

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

Design, Engineering, Finance, Construction, Operation and Maintenance of Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern

REPLY TO QUERIES

In the pre-bid meeting held on 9th June, 2011, the queries have been raised on a number of issues in which many of them already stand clarified in the bidding documents including the Draft Concession Agreement. For the purpose of clarify, the following is further clarified in a general manner:

(i) There shall be no change in the Draft Concession Agreement (RFP Volume – II and Volume III) except the Addendum/clarification issued herewith.

(ii) In reply to all queries emanating from Feasibility Report (FR), it is stated that the information furnished in the FR is only for guidance purpose to the bidders. NHA does not take any responsibility for the correctness or otherwise all the information given in the FR. Bidders may please not that FR shall not become part of the concession agreement.

(iii) For the purpose of Clause 2.1.15, the names of the Technical and Financial advisors to the Authority are as follows:

Technical Advisor – M/s Consulting Engineers Group Ltd

Financial Advisor – Deloitte Touche Tohmatsu India Private Limited

Legal Advisor – Legal Consultant M/s Hemant Sahai Associates through M/s Deloitte Touche Tohmatsu India Private Limited

The specific issues referred to by the bidders in the pre-bid have been identified and replied to as under:

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Pre Bid Meeting:- 09.06.2011

Sl No.	Existing Clause	Existing Clause	Query raised	Reply by NHA
1.	Sch-B, Cl, 4.2		An alignment plan of project highway is given at Appendix B-II in soft copy. Kindly clarify whether plan and profile along with levels provided are mandatory	The Land is being acquired as per the Feasibility Report. The FRL given in the plan & profile are the minimum which Concessionaire is required to achieve subject to these Concessionaire is free to design their own profile.
2.	Sch-B, Appendix B1		For 12.0 m depressed median, metal beam crash barrier on both side needs to be provided. Kindly clarify the type of barrier (a flexible type, b-“w” type or thrie beam type or c-Rigid type)	“W” type beam crash barrier to be provided (i) in the either side of 12m wide depressed median (ii) in addition to (i) above as per the requirement of the Manual of Specification of IRC:SP:84-2009. Approximately aggregate length of “W” type beam crash barrier is 692 km.
3.	Sch-B, Appendix B1		12.0 m depressed median shall be provided, Kindly clarify whether the width mentioned consist of 0.6m width adjacent to carriageway in either direction	Yes
4.	Schedule R		Total length of Highway and Bypasses is 337.15 km, wherever as per Schedule B, Appendix B-I (2) total length of the project is 342.100 km and in cl. 1.1.1, Vol-I of RFP document the length of the Project mentioned as 332.46 km. Kindly clarify the length of the project	The total length of the project is 320.21 km + Guna Bypass of 12.25 km
5.	General		As the project length is 332 km it would require at least 75 days to analyse the project and submit out bid. Hence you are requested to extend the Bid Due Date by 30 days i.e. upto 30.07.2011	As per RFP

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6.	Checklist for bid submission	In line with NHAI's checklist for RFQ submission, kindly provide checklist for RFP submission also.	Kindly provide	The Checklist for RFP is already enclosed with bidding document.
7.	Feasibility Report	Kindly clarify whether the feasibility report and any other annexure forming part of it is binding on the Concessionaire or is it only for reference	Kindly clarify	It is only for reference. Bidder has to rely solely on its own due-diligence.
8.	Land acquisition	Kindly clarify the status of land acquisition for this project, especially where realignments and bypasses have been proposed (Proposed Kholaras, Lukwasa, Badarwas, Ruthai, Binaganj, Sarangpur, Shajapur and Maksi Bypasses & Realignment). Has NHAI started the process of land acquisition for this project? What is the total land area required to be acquired for development of this project? How much of it is acquired as of now?	Kindly clarify	The total land area shall be acquired is approximately 982 ha. 3 (a) published and 3 (A) is under progress. For Shajapur and Binaganj bypass land is already acquired.
9.	Environmental clearance	What is the status of environmental clearance for the project?	Kindly clarify	Public hearing is under progress for Environmental clearance
10.	Compensatory Afforestation	Will NHAI bear the cost of Compensatory afforestation?	Kindly clarify	As Per DCA
11.	Engineering data	Kindly provide the fly level survey data for the project road	Kindly clarify	Plan & Profile has already given in soft copy
12.	Engineering data	Kindly provide all the engineering survey data available for the project road particularly for new bypasses	Kindly clarify	Plan & Profile has already given in soft copy
13.	Discrepancy b/w Manual and Schedules	In case of discrepancies between the Schedules and Manual, which will prevail?	Kindly clarify	In case of discrepancies between the Schedules and Manual, first Schedules shall be prevail secondly Manual.
14.	Condition survey details of existing structures	Kindly provide the Condition survey details of existing structures	Kindly clarify	It is a DBFOT project, the concessionaire may assess their own as per requirement of site.
15.	Scope of the	Scope of the project would be as per	Kindly clarify	The scope of the project as per Schedule.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

	project	Schedule B and not as per the manual		
16.	Forest	Is the corridor passing through any forest area, if any pl. confirm extent of stretch passing through such reserved forest areas, ROW requirements in the same, LA status of same	Kindly clarify	The length of the stretches 8.145 km and 25 ha. Land is passing through forest area. ROW requirement is 60 m. Forest proposal for diversion of forest land is submitted to forest department and
17.	Total Project Cost	Kindly provide the breakup of the Total Project Cost (TPC) and the year of estimation of the project cost.	Kindly provide	The estimation of cost given is tentative and is based on applicable schedule of rates of MPPWD with updated cost of basic material. Concessionaire may asses their own cost
18.	cl. 1.2.3 and cl. 2.1.3	The provisions “The Feasibility Report prepared ... the aforesaid documents ... part of the Bidding Documents” and “The Feasibility Report for the Project is being provided only as a preliminary reference...” appear contradictory. While it is qualified that the Feasibility report is not binding and is for guidance only, the rationale in making the same as part of the bid documents is not clear.	Since the Feasibility Report is not as detailed as a DPR and given the qualifications under Cl 2.1.3, the same may not be treated as part of the bid documents. The provision in the clause, “Nothing contained in the Feasibility Report shall be binding on the Authority” providing immunity to the Authority may please be extended to the bidder as well.	Feasibility Report is only for reference purpose. It is a DBFOT project, the concessionaire may asses their own.
19.	cl.2.1.15 pg.16	Kindly provide the details of the legal, technical and financial advisers of the Authority	Kindly provide	Legal Consultant M/s Hemant Sahai Associates through M/s Deloitte Touche Tohmatsu India Private Limited Financial: Deloitte Touche Tohmatsu India Private Limited Technical: M/s Consulting Engineers Group Ltd
20.	Appendix- Cl. 16	This clause applies to bidders who apply as consortium only. The same may please be deleted for single bidders.	Kindly modify	As per RFP
21.	General	Costs arising out of Rehabilitation and Resettlement (R&R): There are no provisions in the DCA to effectively cover issues arising out of R&R activities. Concessionaire has very little control over these.	As practiced, the Authority may please take all responsibilities and costs arising out of R&R activities. Necessary provisions may please be included in the DCA to cover these.	As per DCA
22.	Cl 2.1	The scope of the Project (the “Scope of	Sub clause (d) to be inserted:	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		the Project”) shall mean and include, during the Concession Period: (a) construction of the Project Highway on the Site set forth in Schedule-A and as specified in Schedule-B together with provision of Project Facilities as specified in Schedule-C, and in conformity with the Specifications and Standards set forth in Schedule-D; (b) operation and maintenance of the Project Highway in accordance with the provisions of this Agreement; and (c) performance and fulfilment of all other obligations of the Concessionaire in accordance with the provisions of this Agreement and matters incidental thereto or necessary for the performance of any or all of the obligations of the Concessionaire under this Agreement.	“construction of the project highway shall be in accordance with the scope of the project described in Schedules B & C. Any elements of design mentioned there in shall be only for reference. Concessionaire shall be free to choose own designs based on Schedule D”	
23.	cl. 4.1.2	As Condition Precedent, the Authority to provide the Concessionaire: 1. Right of Way 2. Railway Authorities approval 3. Procuring all permits for environment protection and conservation of site	In case of delay in any of the mentioned condition precedents, the Financial Closure date should stand extended by such delay without any reduction in the Concession Period. In addition to this the Authority shall be liable to pay damages to the Concessionaire in accordance with Article 4.2	The non-clearance for the Forest stretches will not affect the issuance of Provisional Completion certificate. In case the affected Stretch (Forest) is not handed over one year before the Schedule date of four-laning completion, then the Concessionaire will be entitled for getting provisional COD for the unaffected Stretch as per RFP provision. In such eventuality the concessionaire shall be entitled for collection of toll for the completed stretch only. It may also be noted that, in case the bid is accepted on grant basis by NHAI, the grant shall be paid to the Concessionaire on a pro-rata basis in terms of linear length of the unaffected project stretch. Balance part of the grant shall be paid during construction of the affected stretch as per provisions of the RFP. Similarly, in case of premium bid accepted by NHAI, the premium shall be

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

				payable to NHAI on pro-rata basis in terms of linear length of the unaffected project stretch up to issuance of COD for the entire stretch and thereafter total premium amount as accepted by NHAI, shall be payable to NHAI as per concession agreement. For avoidance of doubt, it may also be noted that no escalation/ interest shall be payable on grant/ premium to either of the parties as applicable except as per provisions of the Concession Agreement. It is further clarified that in case of delay in handing over of the forest affected stretch, the existing two lane stretch passing through forest area shall be renewed and maintained by the concessionaire during the concession period till the said stretch is four-laned. Further the concessionaire will complete affected stretches within one year of the handing over of site during the concession period, thereafter the provisional COD/ COD for the entire stretch shall be considered and accordingly toll shall be collected for the entire completed stretch. At the same time no additional amount on account of rise/ escalation in construction cost for the affected stretch shall be payable.
24.	cl. 4.1.3 (b), (c)	Conditions Precedent for the Concessionaire is to execute and procure execution of Escrow and Substitution Agreement	It should be sufficient compliance if the Concessionaire & the Lenders/Lenders Representative executes as NHAI takes time to execute these document and it may happen after the Appointed Date also.	As per DCA
25.	Cl 4.1.2 (d)	CP of Authority to procure GAD approval	Add the following in the proviso "ROB/RUB" also along with "over bridges" Cl 6.1.2, "Obligations of the Authority". "upon request of the Concessionaire provide all assistance	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			in getting necessary approvals incidental to the construction of ROB/RUB."	
26.	cl. 4.1.2 (e) , cl. 5.1.4 (a) & Sch E	While all Applicable Permits relating to environmental protection and conservation of site shall be procured by Authority as a Condition Precedent (prior to Appointed Date), the permission to cut trees have been mandated to the concessionaire. This essentially shall be under the purview of environmental protection and conservation.	Since Authority has taken the responsibility with respect to all Applicable Permits relating to environmental protection and conservation of site, tree cutting permissions may also be made part of the same.	As per DCA
27.	Cl 4.1.3. (d)	procured all the Applicable Permits specified in Schedule-E unconditionally or if subject to conditions, then all such conditions shall have been satisfied in full and such Applicable Permits are in full force and effect;	procured all the Applicable Permits specified in Schedule-E , as may be required from time to time during construction of the Project Highway unconditionally or if subject to conditions, then all such conditions shall have been satisfied in full and such Applicable Permits are in full force and effect; <i>Alternatively</i> , two sets of permits may be given, one which need to be complied as a Condition Precedent and another to be complied during the course of concession. Additionally all such permits which need not be required prior to commencement of construction may be reworded as "undertakings to procure" to bind the Concessionaire to procure these as and when required.	As per DCA
28.	Clause 4.1.3 (b) & (c)	(b) executed and procured execution of the Escrow Agreement; (c) executed and procured execution of the Substitution Agreement;	It should be sufficient compliance if the Concessionaire & the Lenders/Lenders Agent execute, as our experience suggests that the Authority takes time to execute these documents and it may happen after	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			the appointed date also.	
29.	cl. 4.2 & cl. 4.3	Damages for delay by the Authority is 0.1% of Performance Security for each day of delay but damages for delay by the Concessionaire is 0.2% of Performance Security for each day of delay	The quantum of damages to be made same to be equitable for both parties	As per DCA
30.	Cl. 5.2.4	For the avoidance of doubt, it is expressly agreed that in the event the Authority does not exercise such rights of substitution within a period not exceeding 90 (ninety) days from the Transfer Date, the Project Agreements shall be deemed to cease to be in force and effect on the Transfer Date without any liability whatsoever on the Authority and the Covenant shall expressly provide for such eventuality. The Concessionaire expressly agrees to include the Covenant in all its Project Agreements and undertakes that it shall, in respect of each of the Project Agreements, procure and deliver to the Authority an acknowledgment and undertaking, in a form acceptable to the Authority, from the counter party(ies) of each of the Project Agreements, whereunder such counter party(ies) shall acknowledge and accept the Covenant and undertake to be bound by the same and not to seek any relief or remedy whatsoever from the Authority in the event of Termination or Suspension.	The highlighted portion needs to be deleted as it maybe onerous to the counter parties to the Project Documents and may be difficult for the Concessionaire to get them expressly agree to this clause.	As per DCA
31.	cl. 5.1.4 (e)	"The Concessionaire shall, at its own cost and expense... (e) make reasonable efforts to facilitate the acquisition of land required for the purposes of the Agreement". This provision could be	Please clarify that all costs associated with Land Acquisition shall be borne by the Authority	Provision is self explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		interpreted as if the LA activity shall cost the Concessionaire, while it is the Authority's obligation to transfer encumbrance free Site to the Concessionaire at no additional cost than the Concession Fee.		
32.	cl. 5.3.2. (i) and (ii)	Change in ownership to require prior approval of NHAI for acquisition of 15% or above.	This rule to be made applicable subject to complying with the requirements under Article 7.1 (k) as dilution between 49% and 100% is permitted under it. Any sale beyond what is permitted under 7.1 (k) alone should be subject to this condition.	As per DCA
33.	CI 5.7	The Project Highway or any part thereof shall not be branded in any manner to advertise, display or reflect the name or identity of the Concessionaire or its shareholders. The Concessionaire undertakes that it shall not, in any manner, use the name or entity of the Project Highway to advertise or display its own identity, brand equity or business interests, including those of its shareholders, save and except as may be necessary in the normal course of business. For the avoidance of doubt, it is agreed that the Concessionaire may display its own name at a spot where other ..."	Non- commercial branding may be allowed to improve public perception	As per DCA
34.	CI 6.1.2, CI 10.4	Provisions regarding Rehabilitation and Resettlement activities are not available as part of CI 6.1.2. CI 10.4 - Subject to the provisions of Clause 10.3, the Site shall be made available by the Authority to the Concessionaire pursuant hereto free from all Encumbrances and occupations and without the Concessionaire being	New insertion in CI 6.1.2, "Obligations of the Authority" "bear the responsibility and costs relating to all Rehabilitation and Resettlement required for the construction of Project Highway" to include proper definition to Rehabilitation and Resettlement to	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		required to make any payment to the Authority on account of any costs, compensation, expenses and charges for the acquisition and use of such Site for the duration of the Concession Period, except insofar as otherwise expressly provided in this Agreement. For the avoidance of doubt, it is agreed that existing rights of way, easements, privileges, liberties and appurtenances to the Licensed Premises shall not be deemed to be Encumbrances	cover all compensation with respect to land acquisition along with cost of land like reconstruction of buildings, public structures, religious structures, compensating for loss of livelihood of PAPs, etc.	
35.	cl.6.2	<i>“Maintenance obligations prior to Appointed Date</i> <i>During the Development Period, the Authority shall maintain the Project Highway, at its own cost and expense, so that its traffic worthiness and safety are at no time materially inferior as compared to its condition 7 (seven) days prior to the last date for submission of the Bid”</i>	Please clarify as to when NHAI would record the condition of the project road for assessing the maintenance requirements during the development period. The details of condition of the project road recorded 7 days prior to the Bid may be supplied to the concessionaire.	As per DCA
36.	CI 7.2	The following additional Representations and Warranties of the Authority needs to be added: (i) there are no actions, suits or proceedings pending or, to its knowledge, threatened against it at law or in equity before any court or before any other judicial, quasi-judicial or other authority, the outcome of which may result in the default or breach of this Agreement or which individually or in the	These Representations and Warranties were forming part of several NHAI documents earlier and may please be reinstated.	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		aggregate may result in any material impairment of its ability to perform its obligations under this Agreement; (ii) all information provided by it in the Tender Notice and invitation to bid in connection with the Project is, to the best of its knowledge and belief, true and accurate in all material respects;		
37.	Cl. 8.1.1	The Authority makes no representation whatsoever, express, implicit or otherwise, regarding the accuracy and/or completeness of the information provided by it and the Concessionaire confirms that it shall have no claim whatsoever against the Authority in this regard.	The phrase “Save as provided in Clause 7.2” should be added at the beginning of the sentence.	As per DCA
38.	cl. 10.4	Site to be free of Encumbrances- the last line is ”....For the avoidance of doubt, it is agreed that existing rights of way, easements, privileges, liberties and appurtenances to the Licensed Premises shall not be deemed to be Encumbrances”. This extra proviso defeats the entire concept of Encumbrance free land to be provided to the Concessionaire, and also	The same may please be deleted to enable the definition of Encumbrance to hold good.	As per DCA
39.	cl. 11.4	This clause only deals with felling of trees and associated costs. There is no	Since Authority owns felled trees and bears the cost of felling as per the	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		reference of Compensatory Afforestation which would be required to compensate the felling.	provision, any Compensatory Afforestation required on account of felling of trees may please be made responsibility of the Authority	
40.	cl. 16 – Change of Scope	The Authority has the right to award any works or services on the basis of open competitive bidding after giving notice to the Concessionaire and considering its reply thereto. In the event such bidding takes place, then the Concessionaire has a right to participate and if the bid quoted by the Concessionaire falls short of the highest bid by less than 10%, then the Concessionaire is entitled to match the bid of the highest bidder. [Clause 16.5]	The performance of works and services by other persons may cause obstructions to the Project Highway or to the works of the Concessionaire. The Authority should be placed under an obligation to facilitate coordination between the works of the Concessionaire and such third persons and ensure that the works or services of such persons do not obstruct the works performed by the Concessionaire. It would be advisable to require the Authority to indemnify the Concessionaire in the event that the works and services performed by such other persons causes a delay in the completion of the Project under the Concession Agreement or causes the Concessionaire to incur any other losses or liabilities.	As per DCA
41.	cl. 17.14 Barriers and diversions	<i>“..The Authority shall procure that <u>during the Operation Period</u>, no barriers are erected or placed by any Government Instrumentality on...”</i>	<i>“The Authority shall procure that <u>during the Construction Period and the Operation Period</u>, no barriers are erected or placed...”</i>	As per DCA
42.	cl. 23.1	Appointment of Independent Engineer	If there is a delay in appointment within the stipulated 90 day period, the Concessionaire shall be automatically allowed extension of time for achieving financial closure for the period of delay without any reduction in Concession Period.	As per DCA
43.	cl. 24.1.1	The damages for delay in achieving Financial Close are 0.1% of the	There is no ceiling for cumulative damages. There should be a ceiling	Provision is self explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Performance Security for each day of delay and shall be paid every week in advance. The extension of Financial Close is given only on payment of advance damages. ...For the avoidance of doubt, the damages payable hereunder by the Concessionaire shall be in addition to the damages, if any, due and payable under the provisions of clause 4.3 (24.1.1)	prescribed. Also there is no provision for refund of excess damages paid in case the Financial Close is achieved midway through a week. To clarify whether any amount paid in excess shall be provided to be refunded. Request deletion of this portion, since this enables the Authority to levy damages twice on the Concessionaire for the same default	
44.	cl. 31 – Escrow Account	The Concession Agreement lays down the order of withdrawals that may be made by the Concessionaire and provides that the Concessionaire may not modify the order of payment except with the approval of the Authority. [Clause 31.3]. While opening of an Escrow Account is typical of financial documents, the Lenders may not prefer a standard form and lack of any requirement of consent on their part to the flow of funds and withdrawal. The Lenders may not agree to a rigid requirement of the Authority's approval for any variation in the order of withdrawal.	The requirement of an Escrow Account and the format should merely be indicative and should be subject to agreement with the Lenders.	As per DCA & Schedules
45.	cl.31.3.1, cl.26.2.1	Debt servicing is placed further down in the waterfall mechanism	It shall be better if premium payment to NHAI shall be after debt servicing and shall provide better comfort to lenders and shall better the project structuring	As per DCA
46.	cl. 31.4.1 (b) and (f)	Withdrawals from the Escrow account upon termination allows only 90% of the	The provision should allow withdrawal of 100% of debt due in (b) and	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Debt due	exclude Debt due in (f)	
47.	cl. 32.2	Insurance requirements during Operations Period	Levels of Insurance to be maintained to the satisfaction of Senior Lenders. The reference to requirement of additional Insurance on the Authority's behest to be deleted. Notice furnishing details of Insurances is requested to be changed to 7 days prior to commencement of construction instead of 45 days	As per DCA
48.	cl. 33.1.1	Requirement to submit accounts	Companies Act provides for 180 days, therefore 60 day period may be changed to be in line with the Act.	As per DCA
49.	cl. 34.3 (e)	Any Indirect Political event that causes a Non-Political event.	Whether the compensation will be calculated treating the event as Indirect Political event or as Non-Political event	Provision is self explanatory
50.	cl. 36 – Suspension of Concessionaire's Rights	The suspension may be revoked if the Concessionaire cures the Concessionaire Default within 90 days of the suspension. [Clause 36.3]. --Under Clause 36.1, the Authority is entitled to suspend all the rights of the Concessionaire including the right to collect the Fees and revenues. If the Authority suspends the right of the Concessionaire to enter upon the Site and complete Construction or to provide any of the O&M Services, then it will not be possible for the Concessionaire to cure the Concessionaire Default, which may lead to termination of the Concession Agreement if the Authority is unable to cure the breach itself.	The suspension of the Concessionaire's rights needs to be qualified to that extent. There should be an express provision enabling the Concessionaire to gain access to the Site or the Project Highway and to perform such activities as may be necessary for the Concessionaire to cure the Concessionaire Default which results in such suspension.	No change
51.	cl. 37.3.1	Termination payment for Concessionaire	As the entire debt due is utilized for	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		default during Operation Period	the project, the compensation under this Article to be 100% of Debt Due and the reference to payment of only 80% unpaid insurance claims to be removed. This will be demanded by the Lenders. NHAI should also pay the debt drawn and utilized during construction period as the Authority gets the benefit of the amount invested.	
52.	cl. 39– Defects Liability after termination	The Concessionaire is responsible for all defects and deficiencies in the Project Highway for a period of 120 days after termination and is required to repair the defects and deficiencies within 15 days from the date of notice issued by the Authority. [Clause 39.1]. The period of cure available to the Concessionaire is only 15 days. --This is a very short period and the result of being unable to cure the defect would result in a third party being required to cure such defect and compensation being claimed from the Concessionaire for the same. A sum equivalent to 5% of the total realisable fee for the year immediately preceding the Transfer Date should be retained in an Escrow Account for meeting the liabilities in the defects liability period. This amount is to be retained for a period of 120 days after termination and in the event that the Independent Engineer carries out an inspection between 180 days and 210 days prior to the termination and	The Concession Agreement should be amended to provide for a period of at least 60 days to cure any defects and deficiencies. The Concession Agreement should be amended to limit the excessive amount that may be recommended to be retained in the Escrow Account and also provide that the Independent Engineer may only recommend such retention on grounds relating to the Safety Requirements mentioned in the Schedule L or such other definite standard. Also, the period for which such excess amount is to be retained shall be as specified by the Independent Engineer. This has a serious implication of extending the defects	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		recommends that a higher amount is to be retained, then such recommended amount is to be retained in the Escrow Account for the period specified by it. [Clause 39.2]-- There is no cap on the extra amount that the Independent Engineer may recommend should be maintained in the Escrow Account. This clause also does not provide for the grounds on which the Independent Engineer may recommend the retention of an excess amount.	liability period indefinitely. The period for retention of any excess amounts in the Escrow Account as recommended by the Independent Engineer should not exceed the period of 120 days from termination.	
53.	cl. 40 – Assignment and Charges read with Schedule V – Substitution Agreement	The form of the Substitution Agreement “to be entered into” between the Concessionaire, the Lender’s Representative and the Authority is annexed. [Clause 40.3.1]	Further, clause 40.3.2 should be amended to specifically state that upon substitution, the Authority shall not hold the Concessionaire responsible for any actions or omissions of the Nominated Company.	As per DCA
54.	cl. 40.2.b with 48.1	Permitted assignment and charges and definition of Project Assets	The security to be provided to the Lenders is exclusive of the Project Assets which by definition includes everything and Lenders do not derive any comfort from this provision. Suggest excluding Article (d), (e), (f), (g) of the definition of Project Assets as per Article 48 for the purpose of providing security.	As per DCA
55.	cl. 43 – Rights and Title over the Site		The obligation of the Authority should extend to taking actions and defending any actions taken by any persons in respect of the Site, in the event of any trespass or claim relating to title. This is relevant since the Concessionaire is only a licensee as per the Concession Agreement and does not have any title to the Site.	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

56.	cl. 44 – Dispute Resolution	The Award is stipulated to be final and binding on the Parties as from the date that they are made. [Clause 44.3.3]	It may be noted that Section 34 of the Arbitration Act provides for grounds of challenge of the award, including the ground that the award is “contrary to public policy”. “Public policy” has been given a wide meaning with respect to domestic awards. Therefore, Clause 44.3.3 will be subject to any challenge of the award under Section 34 of the Arbitration Act.	Provision is self explanatory
57.	Cl. 47.3 – State Support Agreement	...concessionaire acknowledges that it has received from the Authority a certified true copy of the agreement...	We request the Authority to clarify whether an executed copy of the agreement would be furnished to us prior to the signing of the concession agreement. We suggest that a draft of the agreement be furnished to us.	MoRTH has already executed Bi-Partite State Support Agreement with the State of Madhya Pradesh. Concessionaire would not be required to execute Project specific State Support Agreement. A copy of the State Support Agreement is already exist in Schedule.
58.	Def	“Change in Law” means the occurrence of any of the following after the date of Bid: (a) the enactment of any new Indian law; (b) the repeal, modification or re-enactment of any existing Indian law; (c) the commencement of any Indian law which has not entered into effect until the date of Bid; (d) a change in the interpretation or application of any Indian law by a judgement of a court of record which has become final, conclusive and binding, as compared to such interpretation or application by a court of record prior to the date of Bid; or (e) any change in the rates of any of the Taxes that have a direct effect on the Project;	Sub clause (f) may be added in definition of “Change in Law” : (f) any change in the price of any commodities have a direct effect on the Project and whose prices are administered directly by Government.	As per DCA
59.	Def. and clause 7.1.k	The provisions are different in definition of Change in Ownership and clause	Kindly clarify and make necessary changes	Provision is self explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		7.1.k		
60.	Appendix A-I, Appendix A-II	Both the referred appendices have been superimposed on each other. Kindly provide separate sheets	Kindly provide	Missing Appendix A-II is enclosed
61.	Schedule A	Existing Major and Minor Junction details are not Given in Schedule-A	Kindly provide	Existing Major and Minor Junction details is enclosed
62.	Schedule A, Appendix A - II	Please provide ROW details from Chainage 236.000 to 267.080.	Kindly provide	The details of ROW from ch. 236.000 to 267.080 is enclosed at Annex-A
63.	Schedule A, Cl. 8 & Appendix A - V	In Cl. No 8 of Schedule A, it is mentioned as 1 No. of Rail Over Bridge, Whereas in Appendix A – V, it is mentioned as 1 No of Road Over Bridge. Please Clarify whether it is Railway over Bridge or Road Over Bridge.	Kindly clarify	2 nos of RUB at km 285+020 7 492+632 are exist in existing alignment
64.	Sch B	Kindly provide detailed table of existing and proposed chainage for the Project stretch	Kindly provide the existing chainage	As per schedule B
65.	Sch.B- cl. 4.11	GAD for the proposed ROB's not provided	Kindly provide the same	GAD is under review of Railway Authorities.
66.	Schedule A- Appendix A-VII, Schedule B- Appendix B XIV- B	Minor bridge @ km 312.400- mentions existing width of superstructure as 12m, while at site the width is found to be only 8.6m. Hence this would entail widening of the existing bridge also, which I not given at present in Schedule B. Kindly clarify Minor bridge @ km 349.215- mentions existing width of superstructure as 12m, while at site the width is found to be only 9.25m. Hence this would entail widening of the existing bridge also, which I not given at present in Schedule B. Kindly clarify	Kindly clarify Kindly clarify	Yes. Bridge to be widened to 12m. At 349.215 is new 4 lane bridge as per Appendix B XIV

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

67.	Schedule A, Schedule B, cl. 49 of DCA	Guna Bypass- cl. 49 of DCA mentions that Concessionaire shall augment Guna Bypass within one year of receiving ROW for same. However, scope of works have not been given in schedule B, which is open ended and Concessionaire is not in a position to ascertain scope of works without understanding NHA requirements. Also, in schedule A, width of structures is given as 2 lanes in Guna Bypass, while in field, it is 4 lane already.	Kindly clarify Kindly clarify	As per DCA and Schedule
68.	Schedule B- Appendix BI – 2, Schedule R	2-Lane 9.8 km of Dewas bypass will have cost of construction more than 10 crores. In Schedule –R, this bypass is not included. Please clarify tolling strategy for Dewas bypass link	Kindly clarify	Dewas bypass link deleted
69.	Schedule B (Appendix B-VIII)	Major Junction list shows '+' (4 legged) junction at chainage 421+800 which is actually 'Y' (3 legged) junction and at km 425+250 'Y' (3 legged) junction is indicated which is actually '+' (4 legged) junction.	Kindly clarify	At km421+800 is 3 legged junction and at km 425+250 is 4 legged junction
70.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 4 the width of paved carriageway between Design chainage 62+100 to 63+100 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 6 between design chainage 62+000 to 63+300 which has a paved width of 24.5 m (including both sides).	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 62+100 to 63+100.	It is a mayna urban area where paved carriageway width is 2x13.495 m for ch. 62.00 to 63.300. Cross sectional detail in this section is 10.5 m carriageway width +2 m paved shoulders and in 2.5 m median with NJB. Additional paved width between NJB edge to edge strip 0.995 m.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

71.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 5 the width of paved carriageway between Design chainage 72+175 to 73+270 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 6 between design chainage 71+810 to 73+350 which has a paved width of 24.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 72+175 to 73+270.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 72+175 to 73+270.	This is six lane urban carriageway with flush median having NJB (New Jersey Barrier) cross sectional elements are as under: 2x10.5 m + 2x2 m paved shoulder + 2x0.995 m paved width of flush median + NJB.
72.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 7 the width of paved carriageway between Design chainage 115+885 to 119+900 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 11 between design chainage 115+850 to 119+900 which has a paved width of 25.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 115+885 to 119+900.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 115+885 to 119+900.	Cross sectional elements between 115+885 to 119+900 are as under: 10.5 m carriageway width + 2 m paved shoulder + 0.6 m NJB width + 0.995 m paved width between NJB and edge strip on either side hence total paved with excluding NJB will be 2x13.495 m.
73.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 8 the width of paved carriageway between Design chainage 158+825 to 159+825 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 6 between design chainage 158+820 to 160+440 which has a paved width of	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 158+825 to 159+825.	Paved width will be 2x13.495 m excluding NJB are as under: 2x10.5 m carriageway width + 2x2 m paved shoulder + 2x0.995 m of median width excluding NJB.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		24.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 158+825 to 159+825.		
74.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 9 the width of paved carriageway between Design chainage 168+000 to 168+640 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 14 between design chainage 168+000 to 168+640 which has a paved width of 25.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 168+000 to 168+640.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 168+000 to 168+640.	The cross sectional elements between design chainage 168+000 to 168+640 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.
75.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 10 the width of paved carriageway between Design chainage 183+800 to 184+850 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 13 between design chainage 184+400 to 185+850 which has a paved width of 25.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 184+400 to 185+850.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 184+400 to 185+850.	The cross sectional elements between design chainage 184+400 to 185+850 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

76.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 11 the width of paved carriageway between Design chainage 184+850 to 185+650 as 2 x 14.00 (28.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 13 between design chainage 184+400 to 185+850 which has a paved width of 25.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 184+400 to 185+850.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 184+400 to 185+850.	The cross sectional elements between design chainage 184+400 to 185+850 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.
77.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 12 the width of paved carriageway between Design chainage 189+585 to 191+200 as 1 x 13.495 + 1 x 14 (27.495 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 9 between design chainage 189+500 to 191+200 which has a paved width of 24 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 189+500 to 191+200.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 189+500 to 191+200.	The cross sectional elements between design chainage 189+500 to 191+200 are as under: 2x14 m with 7 m wide slip road + 1.5 m footpath.
78.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 13 the width of paved carriageway between Design chainage 202+750 to 204+050 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 14 between design chainage 202+750 to	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 202+750 to 204+050.	The cross sectional elements between design chainage 202+750 to 204+050 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		204+050 which has a paved width of 25.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 202+750 to 204+050.		
79.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 14 the width of paved carriageway between Design chainage 213+375 to 216+285 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 14 between design chainage 213+350 to 216+250 which has a paved width of 25.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 213+350 to 216+250	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 213+350 to 216+250	The cross sectional elements between design chainage 213+350 to 216+250 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.
80.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 14 the width of paved carriageway between Design chainage 213+375 to 216+285 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 3 between design chainage 216+250 to 216+285 which has a paved width of 18.2 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 216+250 to 216+285.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 216+250 to 216+285.	The cross sectional elements between design chainage 216+250 to 216+285 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

81.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 15 the width of paved carriageway between Design chainage 226+750 to 228+450 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 6 between design chainage 226+750 to 228+450 which has a paved width of 24.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 226+750 to 228+450.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 226+750 to 228+450.	The cross sectional elements between design chainage 226+750 to 228+450 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.
82.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 16 the width of paved carriageway between Design chainage 254+185 to 256+500 as 2 x 10 (20.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 7 between design chainage 254+100 to 256+500 which has a paved width of 17 m (including both sides). Kindly confirm the width of pavement and other cross sectional elements between design chainage 254+100 to 256+500.	Kindly confirm the width of pavement and other cross sectional elements between design chainage 254+100 to 256+500.	1x10 m for existing carriageway under RUB and 1x7 m + 2x1.5 m paved shoulder for new realignment portion.
83.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 18 the width of paved carriageway between Design chainage 258+340 to 259+380 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 14 between design chainage 258+500 to 259+620 which has a paved width of	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 258+500 to 259+620.	The cross sectional elements between design chainage 258+500 to 259+620 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		25.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 258+500 to 259+620.		
84.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 18 the width of paved carriageway between Design chainage 258+340 to 259+380 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 14 between design chainage 258+340 to 258+500 which has a paved width of 18.2 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 258+340 to 258+500.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 258+340 to 258+500.	The cross sectional elements between design chainage 258+340 to 258+500 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.
85.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 20 the width of paved carriageway between Design chainage 313+940 to 314+940 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 3 between design chainage 304+100 to 316+750 which has a paved width of 18.2 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 304+100 to 316+750.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 304+100 to 316+750	The cross sectional elements between design chainage 304+100 to 316+750 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

86.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 21 the width of paved carriageway between Design chainage 317+390 to 317+940 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 6 between design chainage 316+750 to 318+350 which has a paved width of 24.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 316+750 to 318+350.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 316+750 to 318+350.	The cross sectional elements between design chainage 316+750 to 318+350 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.
87.	Clause 1.1 and Appendix BI of Clause 4.1 of Annex I of Schedule B	Clause 1.1 of Annex I of Schedule B mentions in S.no 22 the width of paved carriageway between Design chainage 326+400 to 332+100 as 2 x 13.495 (26.00 m) whereas and Appendix BI of Clause 4.1 of Annex I of Schedule B mentions cross section type TCS 13 between design chainage 326+200 to 332+300 which has a paved width of 25.5 m (including both sides). Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 326+200 to 332+300.	Kindly confirm the width of pavement, median and other cross sectional elements between design chainage 326+200 to 332+300.	The cross sectional elements between design chainage 326+200 to 332+300 are as under: 2x10.5 m main carriageway width + 2x2 m paved shoulder + 2x0.995 m of flush median width excluding NJB.
88.	Clause 4.15 Annex – I of Schedule B	Entry / Exit ramps for entering into or exiting from the project highway shall be provided wherever necessary.	Kindly provide the chainage wise details where the entry / exit ramps to be provided in the project highway.	It is DBFOT Project. However entry exit ramp shall be provided at grade separating location.
89.	Appendix B-I (1) & (2)	Km 62+000 to Km 63+300 – TCS 6 Km 71+810 to Km 73+350 – TCS 6	Kindly confirm the manual to be used for these sections.	As per provision made in Schedule and IRC manual.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Km 158+820 to Km 160+440 – TCS 6 Km 226+750 to Km 228+450 – TCS 6 Km 316+750 to Km 318+350 – TCS 6 TCS 6 – 6 laning for Urban section as per manual and 2.5 m median with NJB at PUP location		
90.	Appendix B-I (2) & Appendix B-XII of Schedule B	Existing Ch. Km 538+150 to Km 550+800 / Design Ch. Km 304+100 to Km 316+750 – TCS 3 As per appendix B-XII PUP / CUP Existing Ch. Km 540+500 / Design Ch. Km 306+410 Existing Ch. Km 548+600 / Design Ch. Km 304+508	Kindly confirm the design chainage of PUP / CUP at existing Ch. Km 548+600.	Design chainage at existing km 548+600 is 314+508.
91.	Appendix B-I (2) and Appendix B-V of Schedule B	As per appendix B-I (2) from Km 326+200 to Km 332+300 TCS 13 (Service road c/s) is proposed and as per appendix B-V in the details of service road, from Km 326+200 to Km 332+400 service road is proposed.	Kindly confirm the end chainage of Service road for the section, is it Km 332+300 or Km 332+400	332+400
92.	Appendix B-XI B, Appendix B-V and Appendix B-I (2) of Schedule B	Sarangpur Bypass VUP at Km 246+178 is proposed. As per appendix B-V (details of Service roads) Km 246+178 section is not mentioned. Also as per appendix B-I (2) from Km 243+050 to Km 246+950 TCS 1 is proposed (C/s does not provide any service road) and	Kindly confirm the type of TCS to be follow for the proposed VUP.	VUP chainage is 247+460

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		for VUP, as per appendix B-I (1) TCS 9 & TCS 15 is applicable.		
93.	Appendix A-IV of Schedule A and Appendix B-XIII (B) of Schedule B	Major Bridges at Km 323+925, Km 328+663, 345+999, Km 368+500, Km 404+200, Km433+550, Km 485+800, Km 511+700, Km 521+000, Km 552+730 types of bridges and its details are mentioned, whereas in Appendix B-XII (B) of Schedule B doesn't mentioned any rehabilitation or widening of the existing bridge.	Kindly confirm any rehabilitation or widening of existing bridge is to be done or it is to be dismantled or abandon.	As per Schedule, however bridges coming on existing carriageway where bypass/realignment purposed shall be maintained during construction.
94.	Appendix B-XIV (A) & (B) of Schedule B	As per appendix B-XIV (A), at existing Ch. Km 418+810 new 2-lane bridge is proposed, but as per appendix B-XIV (B) there is no repair & rehabilitation is proposed for the existing bridge.	Kindly confirm the existing bridge is to retained or to be dismantle or abandon and new 4-lane bridge is to be construct.	At existing chainage 418+810 it is a new four lane bridge. However, the existing bridge is to be maintained during construction period.
95.	Appendix A-VII of Schedule A and Appendix B-XIV (A) & (B) of Schedule B	As per appendix A-VII of Schedule A, existing bridges at Km 242+540, Km 251+300, Km 264+650, Km 322+286, Km327+620, Km 327+486, Km 328+392, Km 331+215, Km 386+495, Km 386+929, Km 388+770, Km 389+504, Km 474+460, Km 480+750, Km 497+1070, Km 508+900, Km 509+100, Km 509+900 types of bridges and its details are mentioned, whereas in Appendix B-XIV (A) & (B) of Schedule B doesn't mentioned construction of new 4-lane bridge at these chainages nor any rehabilitation or widening of the existing bridge is proposed.	Kindly confirm any rehabilitation or widening of existing bridge is to be done or it is to be dismantled or abandon.	As per Schedule, however bridges coming on existing carriageway where bypass/realignment purposed shall be maintained during construction.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

96.	Clause 8.0 (f), (g), (h) & (i) Annex – I of Schedule A and Appendix B-XV (Reconstn of Culverts & Widening of culverts) of Schedule B	(f) Existing No. of Box Culverts = 02 Nos (g) Existing No. of Pipe Culverts = 61 Nos (h) Existing No. of Slab Culverts = 85 Nos (i) Existing No. of Slab + Arch Culverts = 04 Nos As per Appendix B-XV of Schedule B: Reconstn&Widening no. of Pipe Culverts = 49 Nos Reconstn&Widening no. of Slab Culverts = 72 Nos	Kindly confirm the nos. of Pipe and Slab culverts.	No. of pipe & slab culverts shall be as per Schedule . Culverts at Dewas bypass missing link has been deleted.
97.	Clause 8.0 (b) Annex – I of Schedule A and appendix B-XVI of Schedule B	(b) No. of ROB / RUB – 01 no. / 02 no. ROB - Km 329+142 RUB – Km 285+020 / Km 492+632	Kindly confirm any rehabilitation or widening of existing ROB / RUB is to be done.	As per DCA.
98.	Schedule – B, Cl. 4.4 & Appendix B-IV	The width of median proposed as 12m, 4.5m, & 2m in Cl. 4.4. But it is mentioned as 12m, 4.5m & 2.5m in Appendix B-IV. Please clarify whether it is 2.0 m or 2.5 m.	Kindly clarify	2.5 m median with 2 m + 0.25 kerb shyness on either side.
99.	Schedule – B, Appendix B-X	In S.No 3, Ex. Chainage 425+500, a new 3 lane flyover is proposed, whereas in Plan & Profile Flyover is proposed on both the Carriage way. Please clarify.	Kindly clarify	As per Schedule
100.	Schedule B, Appendix B – VIII	As per 4 Laning manual a flyover has to be provided at the junctions with NHs. But at the junction of NH – 3 with NH – 76, no Flyover has been proposed.	Kindly clarify	NH-76 passes over NH-3, no flyover has been proposed.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Please clarify		
101.	Appendix B – XIII A & B	In Appendix B – XIII (A), a new 3 lane Bridge has been proposed at 421+286, whereas in Appendix B – XIII (B), the same Bridge is proposed as new 2 lane Bridge. Please clarify.	Kindly clarify	It is a new 3 lane bridge
102.	Schedule A, Appendix A – IV	In existing Chainages 323+925 & 328+663, there exists Major Bridges, which are not covered in Realignment & Bypasses. In schedule B, nothing was mentioned about these 2 Bridges. Please clarify.	Kindly clarify	As per Schedule
103.	Schedule A, Appendix A – VII	In existing Chainages 322+286, 327+620, 327+846, 328+392, 331+215 & 495+107, there exists Minor Bridges, which is not covered in Realignment & Bypasses. In schedule B, nothing was mentioned about these 2 Bridges. Please clarify.	Kindly clarify	As per Schedule
104.	Schedule B, Appendix B – XIV A & B	In Appendix B – XIV (A), 2 x 10m wide Bridges has been proposed at 421+106, whereas in Appendix B – XIV (B), the same Bridge is proposed as new 2 lane Bridge on LHS. Please clarify.	Kindly clarify	2x10 m wide bridge for service road while new 2 lane on left hand side for main carriageway
105.	Schedule B, Appendix B – XIV A & B	In Appendix B – XIV (A), a new 4 lane Bridge has been proposed at 463 +565, whereas in Appendix B – XIV (B), the same Bridge is proposed under widening for 2 lane + new 2 lane. Please clarify.	Kindly clarify	It is a new 4 lane bridge
106.	Schedule B, Appendix B – XIV	The Minor Bridge at Chainage 491+863, 493+447 & 493+600 are proposed under widening, Repair & Rehabilitation for 2 lane. But for another 2 lanes nothing was mentioned. Please Clarify.	Kindly clarify	2 lane bridge proposed on 2 lane realignment portion.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

107.	General	Please provide the General Arrangement Drawings & Geotechnical investigation Reports for Bridges, Flyovers, VUPs, and PUPs & ROB.	Kindly provide	It is a DBFOT project, The concessionaire may assess their own. However the Geo-technical report for reference only. GAD of ROB is under review of Railway Authorities.
108.	Appendix B-XVI	ROB for Dewas Bypass is shown at Existing/Design chainage 14+937, the same needs to be modified to 7+850 as per APLS of Dewas Bypass	Kindly modify	Dewas bypass missing link has been deleted.
109.	Schedule R, Schedule B	The length of Maksi Bypass is wrongly given as 12.25kms, while it is 7.55 kms as per schedule B. Missing 2-Lane 9.8 km of Dewas bypass will have cost of construction more than 10 crores. In Schedule –R, this bypass is not included. Please clarify tolling strategy for Dewas bypass link. Variation in end point – Widening scheme is up to 332+300 and APLS drawings are upto 332+450. From design chainage 332+300 to end point junction is at 300m. This 300m length is considered in junction improvement and indicated in separate drawing. This variation should be added in the construction length After incorporating all above corrections, the total tollable length works out to be 342.400, this is varying from 342.100kms given in Schedule for scope of works also. Hence, schedule B may also be corrected to reflect the exact length of project.	Kindly modify Kindly modify Kindly modify	7.55 km Dewas bypass missing link has been deleted. Correct length of project is 332.460 km including Guna bypass of 12.25 km length. End point of project is 566.450 of NH-3 (start of Dewas bypass)

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

110.	-	Traffic Surveys	Traffic surveys are not being permitted by the Police Authorities. If crucial information is not collected, it will then become difficult to assess the potential of the project and accordingly its viability. NHAI is requested to kindly intervene in the matter and resolve this issue with the Police in allowing and providing assistance for traffic surveys (O-D surveys).	As per RFP
111.	-	Existing Utility Details	Details of existing utilities along the project road have not been mentioned in the document. NHAI is requested to provide the same.	As per Schedule or Feasibility Report.
112.	1.2.3, Pg 10	The Feasibility Report prepared by the Authority/ consultants of the Authority (the "Feasibility Report") is also enclosed.	Feasibility Report is uploaded on the NHAI website; We find that the following details are not made available. Hence, NHAI is requested to make the same available to the bidders: 1. Geotechnical Investigation report 2. Utilities report 3. EIA and EMP report 4. No. of trees involved in cutting	Geotechnical Investigation report is enclosed for reference.
113.	1.3, Pg 11	Bid Due Date is indicated as 30.06.2011.	As mentioned in the letter from NHAI for prequalified bidders, sale of documents will be w.e.f. 16th May 2011, but documents were actually issued on 20th May 2011. Since the bidder has to carry out its own due diligence, including field and traffic surveys, preliminary design etc. for	As per RFP

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			this large project, NHA is requested to extend the Bid Due Date atleast by 45 days.	
114.	2.15.1, Pg 22	As per the provision, modification/substitution/ withdrawal is not permitted on or after the bid due date.	It was observed that in the past that NHA has permitted the original bid and the modified bid to be submitted simultaneously on the Bid Due Date. Whether such modified bid will be permissible or not may please be confirmed by NHA?	As per RFP
115.	2.20	The Bidder is required to provide a Bid Security of 28.15 Crores	In case of a bidder being a consortium, can each consortium member provide Bid security respective to their Share holding, subject to the bid security aggregating to Rs. 28.15 crores (100%). NHA requested to please confirm.	Yes
116.	Feasibility Report	As per the Feasibility Study Report approx 8.45 Kms land is passing Through Reserved Forest/Wildlife/Bird Sanctuary.	1. RFP document is silent on Forest patches, Please give us the detailed chainages where ROW is passing through forests/wildlife sanctuaries. 2. What is the status of Clearance from MOEF/Conservator of Forest for the Reserved Forest Land/Wildlife Sanctuary.	1. Forest stretches passing through are mentioned in Feasibility Report. 2. Forest proposal has been submitted to Forest Department.
117.	27.1.2, Pg 74	A notification for levy and collection of Fee shall be issued by the Government under Section 8A of the Act read with Rule 3 of the National Highways Fee Rules, 2008	Will the notification issued by the Government be read with Rule 3 of the National Highways Fee rules, 2008 and the amendment to the National Highways Fee rules, 2008 issued on 3rd December 2010 and 11th Jan, 2011. Please confirm.	Please see addendum

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

118.	Article 49 Transitional Arrangements	Residual Concession Period is 10 years during which the bypass could disrupt the traffic flow (bottle neck).	1) Could it be feasible to end the present Concession or allow the Concessionaire of Shivpuri-Dewas to widen the bypass from the beginning of the Concession? 2) Whether NHA will provide ROW after the end of concession of Guna Bypass? 3) To comply with the O&M requirements indicated in the Concession Agreement for the tender, it is necessary that operating vehicles (highway patrol, cranes, ambulances) transit through the toll plaza of the Guna Bypass. Can the Authority guarantee that these vehicles shall be exempt from toll payment at this plaza up to the time of transfer of the Guna Bypass to the Concessionaire as per the provisions of article 49 of the C.A. ?	As per RFP
119.	Schedule A Annex-I Clause 1	with additional length of 9.8Km 2 lane with paved shoulders of Dewas bypass missing link"	a. It is not clear whether the proposed Dewas bypass is existing or not? This bypass is not included in the list of bypasses in Sch-R for toll rate consideration. Please clarify. b. Further, along this stretch, is the proposed ROB to be constructed at chainage 14+937? Please clarify the exact chainage as the plan & profile drawings are indicating a different chainage. c. Is there any existing road in this stretch and should any rehabilitation	Dewas bypass has been deleted.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			work be done on this stretch?	
120.	Appendix A-II	Details of ROW is mentioned	The first page giving details of ROW from Km 236 to 267+080 (Sr. no-1 to 34) is missing. Please provide the complete details Details of total ROW along the project corridor is mentioned at various chainages. Please provide ROW on LHS and RHS of Proposed C-line of Four laning cross-section.	Missing information is enclosed.
			The ROW available at most of the locations are less than 60m and in many locations it is around 20-25m. Request to provide the detailed status of land acquisition. Details of land proposed for acquisition in various stages of acquisition process may be provided. Also the status of land acquisition for Toll Plaza, Way side amenities, Bus bays, Truck lay byes and Junctions be provided in details.	Land acquisition work is under progress.
121.	Appendix A-VII	The width of the existing bridge at Chainage at Km. 331+215 is shown as 28.8 m.	The width shown seems to be typographical error. Request to provide the correct width of the bridge.	As per Schedule
122.	Appendix B-I	Type 18 in the list provided for typical cross sectional details of Highway is missing. However the same is shown in the Drawings.	NHAI is requested to make the amendment in the list.	Type of typical cross section mentioned in Schedule shall be prevail.
123.	Appendix B-V	The Service Road shall be provided on	NHAI is requested to clarify whether Service road is required to be	Service road length and stretch as per Schedule B

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		both sides. However as per TCS-16 & TCS-18, the Service Road is to be provided on One side only.	provided at the TCS-16 & TCS-18.	
124.	Appendix B-VII	The design chainage are from 0+000 to 345+300 but on the Concession Agreement Part. 1 Preliminary (A) Project length is approx 332.450 km inclusive of 12.25km Guna Bypass As per Sch-R, total length of the project corridor is 337.15 (length of highway - 272 kms; length of bypasses - 65.15 kms) Sch-B, Appendix B-1 Table 2 on Cross Sections shows the length as 342.1 kms	Which is the right project length? NHA to please clarify and accordingly provide us with consistent tables in the concerned schedules of the CA.	Corrected length of project is 332.46 km including Guna bypass of 12.25 km.
125.	Appendix B-XIII, Vol.III,RFP	New 4-lane bridges are to be constructed at Design Ch. 286+030.	As per the plan and profile drawing the existing bridge is interfering with both new carriageways. It may not be possible to use the existing bridge during construction of either of proposed MCW. Please confirm that alignment at this location can be modified in such a way that during construction traffic can be allowed on existing bridge.	As per Schedule/DCA
126.	Appendix B-XIII	Section A. Ajnar Bridge, S.no 4, Proposed Structure Configuration is "New 3 Lane" but in Section B. Ajnar Bridge, S.no 1, Details of Rehabilitation is New 2 lane bridge to be constructed on LH side	NHA to please clarify if the proposed structure configuration is 2 or 3 Lane?	3 lane bridge
127.	Appendix B-XIV	Section A. Bridge No.422/1, S.no 56, Proposed Structure Configuration is "New 3 Lane" but in Section B. Bridge No.422/1, S.no 30, Details of Rehabilitation is New 2 lane bridge to be	NHA to please clarify if the proposed structure configuration is 2 or 3 Lane?	3 lane bridge

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		constructed on LH side		
128.	Appendix B- XVI	In the Tables locations and Proposed span arrangements of ROB and RUBs are mentioned.	Please provide the GADs of ROBs and their status of approval from Railways. Please indicate the amount to be deposited by the Concessionnaire with the Railways towards the Codal and Maintenance charges for the railway portion of the ROB.	GAD is under review of Railway Authorities.
129.	Appendix B-XVI	The proposed structural configuration is "New 2 Lane" CH 256+777	Why is the structural configuration 2 Lane insted of 4 Lane? Is this ROB alongwith an existing ROB? NHAI to please clarify.	2 lane ROB proposed on realignment with 2 lane alignment over existing carriageway under RUB.
130.	Schedule-B Cl 4.2	Alignment Plan and Longitudinal section for the entire project road has been provided.	At most of the locations the FRL of road and bridge locations have been raised substantially. Please provide the reasons of raising the FRL. Since it is DBFOT project concessionaire should have freedom to design the project highway as per technical requirement with approval of IC/NHAI.	It is DBFOT project however minimum FRL shall be maintained.
131.	Schedule-B Cl 4.2	Typical Cross-sections of the project highway are shown from TCS-1 to TCS-18.	TCS-2,13,15 & 16 are with service road on both sides and with 12.0m median. It may not be possible to fit all the elements of the roads within ROW of 60m as at most of the locations the road is on high embankement. Please confirm that median width can be reduced in order to fit these various elements of road within the available ROW.	As per Schedule. It is DBFOT pattern concessionaire may assess retaining structure to accommodate cross section in 60 m ROW.
132.	Schedule-B Cl 4.2	Pavement of service road	As mentioned in Technical specification (IRC-SP:84-2009),	It is DBFOT project however minimum FRL shall be maintained.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			service road pavement shall be designed for traffic of 5 MSA for which corresponding wearing course is SDBC while in the typical cross-section, the wearing course is shown as BC. We presume that the layers mentioned in TCS are for representation only and concessionaire have freedom to provide the pavement layers as per design. NHA is requested to confirm the same.	
133.	Appendix B-I, Schedule B, RFP	Type 18 in the list provided for typical cross sectional details of Highway is missing. However the same is shown in the Drawings.	NHA is requested to make the amendment in the list.	As per Schedule. Type mentioned in schedule shall be prevail.
134.	Appendix B-XIII, Vol.III,RFP	New 4-lane bridges are to be constructed at Design Ch. 286+030.	As per the plan and profile drawing the existing bridge is interfering with both new carriageways. It may not be possible to use the existing bridge during construction of either of proposed MCW. Please confirm that alignment at this location can be modified in such a way that during construction traffic can be allowed on existing bridge.	As per Schedule
135.	Appendix - B XIII, B-IVX	Hydraulic details	NHA is requested to provide Hydraulic details like Design Discharge, HFL, LWL and Scour level, Velocity of water for all the bridges.	It is a DBFOT project concessionaire may assess their own. The span arrangements are indicative for the guidance of the concessionaire. The minimum length of the bridge shall not be less than the total length of the bridge indicated in Schedule B
136.	Cl. 7.15.1 IRC SP 84	As per provision in the manual, retaining earth retaining structures shall not be provided for heights more than 6.0 m unless otherwise specified.	Since 2.5% gradient is only allowed for flyovers/ROBs etc., the RE walls may be allowed with heights upto 12m with specific approval of materials, designs etc., by NHA/IE. Necessary	It is a DBFOT project concessionaire may assess there on. Being a DBFOT project, height will vary depending upon site condition and the Plan & Profile

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			deviation/amendment to this effect is requested to be made and provided for in the Schedule D.	
137.	Schedule- B	Unpaved shoulder	As mentioned in Clause 2.6.2 of Technical specification (IRC-SP:84-2009), earthen shoulders will be covered with 150 mm of granular material but the same is not depicted in the typical cross sections provided in Schedule-B. NHAI is requested to provide clarification.	As per Indian Road Congress Manual (IRC:SP:84-2009)
138.	Technical specification	Provision of kerb channel and chutes	In Clause 2.6.2, it is mentioned that provision of kerb channel and chutes should be made for embankment height more than 6.0 m while in clause 6.4 of Technical specification (IRC-SP:84-2009) the same is provided for embankment height more than 3.0 m. NHAI is requested to please confirm that clause 2.6.2 prevails over clause 6.4 for provision of kerb channels & chutes.	As per Indian Road Congress Manual (IRC:SP:84-2009) Clause 6.4
139.	Appdendix - B XIII, B-IVX	As per provisions mentioned here various existing major and minor bridges are to be repaired, widened and rehabilitated.	Please provide detailed drawings and other details of existing bridges like past rehabilitation and repairs done to old bridges.	It is a DBFOT project. The rehabilitation measures indicated in the Schedule are indicative only. As per the Concession Agreement it is the responsibility of the Concessionaire to maintain the stretch including structures thereon during the concession period. Concessionaire according is responsible for ascertaining the health of the bridges adopt rehabilitation measure as required. All the Bridges retained are to rehabilitated and maintain by the Concessionaire till the completion Concession Period. The Bridges retained on Bypasses and

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

				realignment stretches are to be maintained till the completion of the Construction Period,
140.	Schedule- C Clasue 2 (g)	It is mentioned in the street lighting shall be provided in urban stretches/built up areas, grade separators, Underpasses, Toll Plaza and its approaches and bus stops.	NHAI to please specify the exact quantum of road stretches and other locations where street lighting are to be provided.	As per Indian Road Congress Manual (IRC:SP:84-2009)
141.	Schedule- B Appendix B-X	In the Schedule the width of the Flyover at Design Chainage 27+685 is mentioned as 1x 12 m (2-lane Flyover). However in Plan & Profile drawings the Flyover is proposed on both LHS & RHS Carriageway. (4 - lane Flyover)	NHAI to please clarify whether it's 2-lane or 4-lane Flyover.	2 lane flyover
142.	Schedule -B - Appendix -B-V	Total Length of Service Road is 62.90 km both sides.	Plan & Profile of Service Road is not available in Alignment Plan given in electronic format. Kindly arrange the same.	It is a DBFOT project.
143.	Schedule -B Appendix -B-XII	Clearance Height & Profile given in drawings	The clear height given in schedule is 4 m. The vertical profile at most of these locations is designed in such a way that a cushion is proposed above underpasses. Is there any specific reason for it or bidder can lower it if site requirements permits. Please clarify	It is a DBFOT project however minimum clear height and FRL shall be maintained as per Schedule B.
144.	Schedule -B Appendix -B-XII	Locations as mention in schedule	Whether the locations of PUP/CUP as given in Appendix B-XII fixed or can be changed based on site feasibility and requirements	As per Schedule
145.	Schedule -B Appendix B-XIII & B-XIV	Span Arrangement & Structure Type	The span arrangement and structure types are proposed in the schedule. Since it is DBFOT project, developer should have freedom to decide the span arrangement and structure type	Refer to Feasibility Report, the span arrangements are indicative for the guidance of the concessionaire. The minimum length of the bridge shall not be less than the total length of the bridge indicated in Schedule B

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			suiting the span of existing bridge as per Design standards and technical specifications. NHAI is requested to confirm the same.	
146.	Schedule -C - Annexure-I	Toll Plaza Locations	The Toll Plaza location at existing km 340 .00 is falling in ghat section with gradient 2.75% .Please consider to change its location.	As per DCA
147.	Schedule -C - Annexure-I	Traffic Aid Post, Medical Aid Post, Vehicle Rescue System, Telecom System	Kindly Specify exact quantum of these facilities.	As per DCA & Indian Road Congress Manual (IRC:SP:84-2009)
148.	Schedule R	Page 2 of Schedule-R "... The rate of fee for use bypass forming part of the NH constructed with the cost of Rs. 10 Cr. or more, base year 2007-08, shall be 1.5 times of the rate of fee specified in sub rule 2" Rule 4. Base rate of fee. (4) states: " The rate of fee for use of permanent bridge bypass or tunnel constructed with the cost exceeding rupees ten crores, shall, for the base year 2007-08, be as follows... (table follows)"	Which is the right rule to apply to determine the fee for the 8 (9 after the end of the Guna Bypass concession) bypasses that are included in the section? Please clarify whether the amendments to toll policy of Dec, 2010 and Jan, 2011 are applicable to this project?	Toll shall be charged in accordance with the National Highways Fee (Determination of Rates and Collection) Rules, 2008 read with National Highways Fee (Determination of Rates and Collection) Amendment Rules, 2010 & National Highways Fee (Determination of Rates and Collection) Amendment Rules, 2011 issued vide notification no G.S. R. 15(E) dated 12.01.2011 Please refer to addendum.
149.	4.20, Page.49, MSS for Four Laning	Ambulance(s) ... shall be available on the Project Highway so that the response time is not more than 10 minutes of call.	What is intended by "response time" here? NHAI is requested to please clarify.	Provision is self- explanatory
150.	Environmental & Forest Clearances		The status of environmental and forest clearances from MOEF may kindly be indicated.	Environmental & forest clearance are under progress.
151.	-		Upon completion of the construction of the Rest Areas, is it possible to subcontract the operation while the maintenance will be carried out by	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			the Concessionaire ?	
152.	Schedule- A Appendix A-V	RUB width at existing ch. 285+020 is shown as 21 m and is skew to the existing alignment	NHAI is requested to clarify that no widening or additional RUB is proposed at this location.	As per Schedule
153.	Volume-I (ITB); Appendix-II	Bank Guarantee for Bid Security	With reference to your RFP-Bid Document-Volume-I, Appendix-II for Bank Guarantee for Bid Security, we wish to bring to your kind notice that as per the RBI guidelines issued to banks for issuance of Bank Guarantee, it is mandatory to add following note at the end of the Bank Guarantee. Further in all the other recent NHAI projects this note has been included in the Bank Guarantee format by issuing a separate addendum. In view of above we request you to issue addendum to this effect as under. The following para needs to be added at the end of serial no. 13 of the Appendix -II of RFP: Notwithstanding anything contained hereinabove, i. Our liability under the Bank Guarantee shall not exceed Rs.----- ----- Crores (in words), ii. The Bank Guarantee shall be valid upto (date), iii. We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before -----.	Notwithstanding Clauses as per RBI guideline may be accepted by NHAI

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

154.	Volume-II; Article 6.3	Obligations relating to Competing Roads The Authority shall procure that during the subsistence of this Agreement, neither the Authority nor any Government Instrumentality shall, at any time before the 10th (tenth) anniversary of the Appointed Date,... Article 48 - Definitions “Competing Road” means a road connecting the two end points of the Project Highway and serving as an alternative route thereof, such road being an existing paved road, which has been widened by more than 2 (two) metres of paved road for at least 75% (seventy five per cent) of the total length thereof at any time after the date of this Agreement,...	The definition of "Competing Road" (Article 48) is too limited: it only compensates for roads that are built from end to end of the project. With such a long project, it doesn't cover any road that can be built to join two intermediate points (say, for example, that they decide to build a parallel road between Guna and Shivpuri).	As per DCA.
155.	Volume-II; 10.8	Geological and archaeological finds ...For the avoidance of doubt, it is <u>agreed that any reasonable expenses incurred by the Concessionaire hereunder shall be reimbursed by the Authority.</u> It is also agreed that the Government shall procure that the instructions hereunder are issued by the concerned Government Instrumentality within a reasonable period.	What is the definition of “reasonable”?	Provision is self explanatory
156.	Volume-II (DCA); 11.2	Shifting of Obstructing utilities: GAIL High Pressure Pipe line from Hazira to Vijay nagar NCF.	GAIL high pressure gas pipe line running parallel to project highway through ROW at many of the stretches. Kindly clarify the responsibility of the Concessionaire regarding shifting of GAIL Pipe line.	As per DCA
157.	Volume II – 12.7	Construction of service roads by the Authority The Authority shall, at any time after the 8th (eighth) anniversary of the Appointed	This article states that the Concessionaire shall have the obligation to maintain the additional service roads built by the Authority	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Date, be entitled in its discretion to undertake at its cost, construction of service roads on the Project Highway in accordance with the specifications and standards applicable to other district roads (ODRs) in the State...	(after the 8th anniversary of the Appointed Date). This should be a Public Authority change under compensation mechanisms specified under Article 16.	
158.	Volume-II; 16.2.3	...In the event that the Parties are unable to agree, the Authority may, by issuing a <u>Change of Scope Order</u> , require the Concessionaire to proceed with the performance thereof pending resolution of the Dispute, or carry out the works in accordance with Clause 16.5.	If the change is not acceptable due to safety or other considerations, how is the concessionaire protected?	Provision is self explanatory
159.	Volume-II; 17.1.2	The Concessionaire shall remove promptly from the Project Highway all surplus construction machinery and materials, waste materials (including hazardous materials and waste water), rubbish and other debris (including, without limitation, accident debris) and keep the Project Highway in a clean, tidy and orderly condition...	Hazardous materials should be considered under unforeseen/compensation events with specific process and remuneration.	As per DCA
160.	Volume-II; 27.6.	Reappropriation of excess Fee: 27.6.1 In the event that the average daily traffic of PCUs in any Accounting Year shall have reached a level equivalent to 120% (one hundred and twenty percent) of the designed capacity specified in Clause 29.2.3 (the “ Traffic Cap ”), the Fee levied and collected from the traffic exceeding the Traffic Cap shall, notwithstanding anything to the contrary contained in this Agreement, be deemed to be due and payable to the Authority in accordance with the provisions of Clause 27.6.2 If traffic in any Accounting Year exceeds the Traffic Cap, the	- How is the Excess Fee calculated? Is it just a percentage of the total revenues, or actually counting the vehicles above the design capacity? - Does Target Traffic and Design Capacity (measured in PCUs) include all vehicles or only toll paying vehicles?	Provision is self explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Concessionaire shall be entitled to collect and appropriate the Realisable Fee for traffic not exceeding the Traffic Cap and for all traffic exceeding the Traffic Cap, the Concessionaire shall collect and deposit the same into the Safety Fund within 60 (sixty) days of the close of the relevant Accounting Year; provided that the balance remaining in respect of the excess traffic of the last Accounting Year of the Concession Period shall be credited to the Safety Fund within 30 (thirty) days of the Transfer Date.		
161.	Volume-II; 27.8	Fee collection points: Fee shall ordinarily be collected at Toll Plazas from vehicles crossing the Toll Plazas and using the whole or part of the Project Highway; provided that for preventing evasion of Fee by any vehicle circumventing one or both of the Toll Plazas and using the whole or part of the Project Highway located between such Toll Plazas, the Concessionaire shall be entitled to set up at its own risk and cost, and in consultation with the Independent Engineer, its temporary or permanent Fee collection booths, as may reasonably be necessary for preventing such evasion. For the avoidance of doubt, the Concessionaire hereby acknowledges and agrees that it shall not determine or collect Fee from Users who only use part of the Project Highway which is situated between the two Toll Plazas. It is further acknowledged and agreed that the restrictions hereunder shall not extend beyond a distance of 10	Can the Concessionaire only set up booths on a 10 km radius of the Toll Plaza or less?	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		(ten) kilometres from the Toll Plazas and the provisions of this Clause 27.8 shall be so enforced as to minimise inconvenience to Users who are not liable to payment of Fee.		
162.	Volume-II; 27.9	Additional charge for evasion of Fee: In the event that any vehicle uses the Project Highway without payment of Fee due, the Concessionaire shall be entitled to determine and collect from such vehicle the Fee due and an equivalent amount towards predetermined liquidated damages for unauthorised use of the Project Highway; provided that the determination and collection of such liquidated damages shall be at the risk and cost of the Concessionaire and the Authority shall not in any manner be liable on account thereof; provided that upon failure of the driver of such vehicle to pay Fee, the Concessionaire may prevent such vehicle from using the Project Highway and may have such vehicle removed therefrom.	When collecting the fee from a vehicle that evaded it, please confirm that the Concessionaire is entitled to twice the fee?	Provision is self explanatory
163.	Volume-II; Article 29	Effect of Variation on Traffic Growth	Are the Target Traffic (§29.1.1) and design capacity (§29.2.3) per direction or total?	Provision is self explanatory
164.	Volume-II (DCA); Article 48	Definitions	Financial Close means the fulfillment of all conditions precedent to the initial availability of funds under the financing agreements. The Concessionaire would not be able to arrange for funds till all the conditions precedent are fulfilled. We request the removal of the words ' to the initial availability of funds under the financing agreements '	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			from this clause.	
165.	Volume-II (DCA); Article 49	Guna Bypass	Kindly provide a copy of the Concession Agreement signed with Guna Infrastructure.	As per DCA
166.	Volume-I (ITB), 1.1.1; Volume-III, Schedule-B, Appendix B-I and Schedule R	Total Length of project highway	Total Length of Project highway as per Appendix B-I is 342.10 km . However the total length as per volume I (Instruction to Bidders) is 332.46 km & tollable length as per Schedule R is 332.54 km . Kindly clarify the exact tollable length.	Please see addendum
167.	Volume-III; Schedule A	1. Site Dewas Bypass: Additional length of 9.2 km 2 lane with paved shoulders of Dewas bypass missing link .	What does missing link mean? We understand that there is a bypass at Dewas being currently tolled. Does it form a part of the project highway? If yes, kindly provide us the details of their concession agreement and when it ends?	It is deleted from scope of work.
168.	Volume-III; Schedule-B, Appendix-B-I	2. Cross section Type along the Project Highway; Sr. No. 117	Kindly clarify whether the Concessionaire would be allowed to collect toll for the missing link of Dewas bypass?	Dewas bypass link is deleted from scope of work.
169.	Volume-III; Appendix B-XIV	Construction of new minor Bridges at Design ch. 183+262 (Existing ch. 418+810), construction of new 2 lane Bridge.	Please clarify whether it is construction of new 2 lane or 4 lane Bridge.	New 4 lane bridge
170.	Volume-III; Appendix B-XIV	Construction of new minor Bridges at Design ch. 228+447 (Existing ch. 463+565), construction of new 4 lane Bridge.	As per Rehabilitation /Repair/Widening of existing minor bridges for ch. 463+565 (Table Sr. no 42), Existing bridge shall be widened to accommodate 2 lane and construction of new 2 lane on RHS side. Please Clarify.	New 4 lane bridge
171.	Volume-III; Schedule-B		Kindly let us know whether all the new structure are to be constructed for Six	As per Schedule

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			Lane configuration.	
172.	Volume-III; Schedule - R	Toll Notification	Schedule R includes only Toll notification 2008. We request you to provide notification No. GSR 950(E) dated 03.12.2010. Please also clarify whether National Highway Fee Amendment Rule 2010 and Amendment rule January 12, 2011 are also applicable for this project? If yes, provide us the copy of the same.	Toll shall be charged in accordance with the National Highways Fee (Determination of Rates and Collection) Rules, 2008 read with National Highways Fee (Determination of Rates and Collection) Amendment Rules, 2010 & National Highways Fee (Determination of Rates and Collection) Amendment Rules, 2011 issued vide notification no G.S. R. 15(E) dated 12.01.2011. Enclosed are the notifications. Also Please see addendum.
173.	Volume-III; Schedule R – p1	Fee Notification: “Now, therefore,... on mechanical vehicles for the use of the section from Km 236.000 to Km 566.450 (<u>Indore Dewas Section</u>) of National Highway No. 3, including the bypass (of more than Rs 10 Crores) of total length <u>60.45Km</u>, in the State of Madhya Pradesh at the rates specified in the aforesaid Rules and authorizes the said Concessionaire to collect and retain the said fees on and from the date of commercial operation of the said section of national highway, subject to and in accordance with the said Rules and the provisions of the aforesaid agreement.”	- This page reads “Indore-Dewas Section”, it should be “Shivpuri-Dewas Section”. Please modify. - When you add up all the bypasses on the p2 of the same schedule, you get 52.9km without Guna and 65.15 including Guna. What are these 60.45km referring to? Please explain. - On the bypass table, do all of these bypasses cost more than Rs 10 Cr.? If not, which of them do?	Please see addendum. All the bypass mentioned in Schedule R cost more than Rs. 10 Crores.
174.	Volume-III; Schedule 4 – p5 – 4. (4)	The rate of fee for use of permanent bridge, bypass or tunnel constructed with the cost exceeding rupees ten crore, shall, for the base year 2007-08, be as follows: [Table - Base rate of fee (rupees per	- Item 4 (4) a states that the cost for private investment project should be the cost assessed by the executing authority. Please give these estimated costs.	Provision is self explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		vehicle per trip)] Provided that while computing fee for the section of national highway on which a permanent bridge, bypass or tunnel costing rupees fifty crore or more is situated, the length of such permanent bridge, bypass or tunnel shall be excluded from the length of such section of national highway and fee shall be levied at the rates specified for such permanent bridge, bypass and tunnel: Provided further that where the cost of such permanent bridge, bypass or tunnel, as the case may be, is less than rupees fifty crore, and the said permanent bridge, bypass or tunnel, form part of the section of national highway, then instead of above rate of fee, the rate of fee specified under sub-rule (2) of Rule 4 shall be applicable for such permanent bridge, bypass or tunnel. Explanation.- For the purpose of this sub-rule, (a) the cost for private investment project, shall be the cost as assessed by the executing authority prior to invitation of bids from the concessionaire ; (b) the cost for public funded project shall be the cost as assessed by the executing authority six months prior to completion thereof.	- Item 4 (4) states on the first line that the fees apply for the bypasses whose cost exceed Rs 10 Cr. but then, on the second paragraph below the table, it says that if cost is below Rs 50 Cr. then the fee should be the base fee (regular fee of table on 4 (2)). Please explain this discrepancy. - Do the first three pages of Schedule R prevail over the rest of the schedule? The first three pages, when talking about bypasses, establish a fee of 1.5 times the base fee while 4 (4) presents a different tolling structure for the bypasses. Please explain this discrepancy. Which is the one to be used?	Toll shall be charged in accordance with the National Highways Fee (Determination of Rates and Collection) Rules, 2008 read with National Highways Fee (Determination of Rates and Collection) Amendment Rules, 2010 & National Highways Fee (Determination of Rates and Collection) Amendment Rules, 2011 issued vide notification no G.S. R. 15(E) dated 12.01.2011 Please see addendum also.
175.	5.1.4 (e)	make reasonable efforts to facilitate the acquisition of land required for the purposes of the Agreement.	The measure of “reasonable efforts” may please be defined.	Provision is self Explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

176.	6.2	Maintenance obligations prior to Appointed Date	Kindly provide the period of reimbursement if such maintenance is carried out by Concessionaire during the development period.	As per DCA
177.	10.3.2	Without prejudice to the provisions of Clause 10.3.1, the Parties hereto agree that on or prior to the Appointed Date, the Authority shall have granted vacant access and Right of Way such that the Appendix shall not include more than 20% (twenty per cent).....	The bidder presumes that not more than 20% of the land shall be part of the Appendix. The bidder shall be compensated appropriately in terms of time and cost if the above is not complied by the Authority.	As per DCA
178.	10.4	 For the avoidance of doubt, it is agreed that existing rights of way, easements, privileges, liberties and appurtenances to the Licensed Premises shall not be deemed to be Encumbrances.	We propose that, easements, privileges, liberties and appurtenances to the Licensed Premises should also be considered as encumbrances. Please confirm.	As per DCA
179.	10.6	The Concessionaire shall bear all costs and charges for any special or temporary right of way required by it in connection with access to the Site.	We request to reimburse all additional costs, in actual, incurred by the Concessionaire towards special/temporary right of way for access to the site. Please confirm	As per DCA
180.	11.2	The cost of such shifting shall be borne by the Authority or by the entity owning such utility....	Please confirm that all Utility Shifting expenses borne by the concessionaire shall be reimbursed to him in actual as incurred by the concessionaire in executing the task of utility shifting. Please confirm	As per DCA
181.	11.3.2	the connecting portion thereof falling within the site shall be constructed by the Concessionaire at the Authority's	The construction costs incurred by the Concessionaire shall be reimbursed in actual only.	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		cost.....	Please confirm.	
182.	17.1.1 (d)	Carrying out periodic preventive maintenance of the Project Highway	Please clarify how is it different from sub-clause (f) which refers to major maintenance such as resurfacing of pavements, repairs to structures, and repairs and refurbishment of tolling system and other equipment. Please clarify.	Provision is self Explanatory
183.	23.1	Appointment of Independent Engineer The appointment shall be made no later than 90 (ninety) days from the date of this Agreement and shall be for a period of 3 (three) years.....	In case of delay in appointment of Independent Engineer, who will be responsible for the duties and functions of the Independent Engineer?	Provision is self Explanatory
184.	27.6 29.1.1 29.2	Re-appropriation of Excess Fee The Authority and the Concessionaire acknowledge that the traffic as on October 1, 2021 (the "Target Date") is estimated to be 26668 PCUs per day (the "Target Traffic")..... Modification in the Concession Period	We interpret from clause 29.1 and 29.2 that the Concessionaire has to face a reduction in the Concession period in case the actual traffic exceeds the Target Traffic on the Target Date respectively. Also, the clauses enforce the Concessionaire to share the Revenue due to higher traffic. In view of the above clauses, the perceived Business Risks of the Concessionaire is multifold as concessionaire has to share excess revenue and also face reduction in concession period. Therefore we request you to kindly omit the above clauses. Please confirm	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

[illegible]

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			Kindly confirm the above mechanism for such extension.	
188.	48.1	"Termination Payment" means the amount payable by the Authority to the Concessionaire upon Termination and may consist of payments on account of and restricted to the Debt Due and Adjusted Equity, as the case may be, which form part of the Total Project Cost.....	It may be observed that the Termination payment under this Agreement is capped to the Total Project Cost (TPC). It has been experienced in previous projects that the actual amount expended by the Concessionaire on constructing the Project Highway is significantly higher than the Authority's TPC estimates. This exposes the Concessionaire to high risks in case of termination which may not be due to the Concessionaire's event of default. This is creating significant problem in achieving the Financial Closure. We request Authority to set the cap on Termination Payment at the actual amount expended by the Concessionaire on construction of Project Highway (as on COD) Please confirm	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

189.	Volume No. I RFP 2.1.3 2.7.2	Volume No. I : RFP The Feasibility Report of the Project is being provided only as a preliminary reference document by way of assistance to the Bidders who are expected to carry out their own surveys, investigations and other detailed examination of the Project before submitting their Bids. Nothing contained in the Feasibility Report shall be binding on the Authority nor confer any right on the Bidders, and the Authority shall have no liability whatsoever in relation to or arising out of any or all contents of the Feasibility Report. The draft Concession Agreement and the Feasibility Report provided by the Authority as part of the Bid Documents shall be deemed to be part of this RFP.	As the both the clauses are contradictory. Please confirm the Feasibility report is the part of the document. If the Feasibility report shall deem to be part of RFP, we requested the Authority to modify the clause 2.1.3 suitably.	As per RFP
190.	5.8	<u>Facilities for Physically challenged and elderly persons:</u> The Concessionaire shall, in conformity with the guidelines issued time to time by Ministry of Social Justice and Empowerment, or a substitute thereof, procure a barrier free environment for the physically or visually challenged and for. elderly persons using the Project	Requested to provide the guide lines issued by Ministry of Social Justice and Empowerment to asses the clear scope of the work.	Guidelines may be obtained from the respective Ministry.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Highway		
191.	8.1.1	The Concessionaire acknowledges that prior to the execution of this Agreement, the Concessionaire has, after a complete and careful examination, made an independent evaluation of the Request for Qualification, Request for Proposals, Scope of the Project, Specifications and Standards, Site, existing structures, local conditions, physical qualities of ground, subsoil and geology, traffic volumes and all information provided by the Authority or obtained, procured or gathered otherwise, and has determined to its satisfaction the accuracy or otherwise thereof and the nature and extent of difficulties, risks and hazards as are likely to arise or may be faced by it in the course of performance of its obligations hereunder. The Authority makes no representation whatsoever, express, implicit or otherwise, regarding the accuracy, adequacy, correctness, reliability and/or completeness of any assessment, assumptions, statement or information provided by it and the Concessionaire confirms that it shall have no claim whatsoever against the Authority in this regard.	The Scope of the project related to Schedule B, Specifications and standards are related to Schedule D. As the Schedule B & D Shall be accurate. Therefore we request the Authority to exclude the Scope of the project; Specifications and Standards shall be excluded from disclaimer clause 8 of DCA.	As per DCA
192.	11.3.2	The Authority may, by notice require the Concessionaire to connect any adjoining road to the Project Highway, upon receipt of a notice hereunder, and the connecting portion thereof falling within the Site shall be constructed by the	We presume that cost maintenance of such connecting road reimbursed by the NHAI in accordance with Article 16. Please confirm.	Provision is self explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Concessionaire at Authority's cost in accordance with Article 16. The maintenance of such connecting portion shall be undertaken by the Concessionaire in accordance with the provisions of Clause 17.1.3.		
193.	12.7	The Authority shall, at any time after 8th (eight) anniversary of the Appointed Date, be entitled in its discretion to undertake at its cost, construction of service roads on The Concessionaire shall have the obligation to maintain the service road in accordance with Good Industry Practice and regulate the use thereof in accordance with the provisions of this Agreement.	This clause puts an unknown but additional cost at a later date on the Concessionaire, the cost of which cannot be ascertained at this stage as the number of kms of service road and the year of development is not known. This exposes the Concessionaire to an unknown cost risk. We request NHAI to delete this clause in this project also or this may treat as variation as and when implemented.	As per DCA
194.	20.4	Recurring expenditure on Police assistance On or before the Scheduled Four-Laning Date, the Concessionaire shall provide to the State Police Department or a substitute thereof one Jeep or similar vehicle in good working condition along with chauffeurs for round-the-clock patrolling as set forth in Clause 20.2 and shall meet the operating costs of such vehicle including the salaries and allowances of the chauffeurs.	Please Clarify this cost shall include the cost pf Police personnel for Mobile police squad. If it is yes, cost shall include for how many police personnel per Each Traffic Aid post.	Provision is self explanatory
195.	21.3	Recurring expenditure on Medical Aid Posts	Requested the Authority to provide the list of medical equipments to be	As per DCA & Indian Road Congress Manual (IRC:SP:84-2009)

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		On or before COD, the Concessionaire shall provide to the State Medical Department or a substitute thereof to be designated by the Authority one ambulance in good working condition along with chauffeurs for round the-clock ambulance services as set forth in Clause 21.1 and meet the operating costs of such ambulance including the salaries and allowances of the chauffeurs. The Concessionaire shall also reimburse to the State Medical Department (or a substitute thereof to be designated by the Authority) the actual expenditure incurred by it in each Accounting Year on the medical equipment, and the pay and allowances of up to 2 (two) medical personnel deployed exclusively for the Medical Aid Posts and Ambulance, and shall maintain the Medical Aid Post buildings in accordance with Good Industry Practice. For the avoidance of doubt, it is agreed that the Concessionaire shall not be liable for any other expenditure incurred by the State Medical Department or a substitute thereof to be designated by the Authority.	provided in the medical aid posts.	
196.	Volume III: Schedules Appendix B-II of Schedule B	Volume III: Schedules: Alignment Plan enclosed in the Digital form in CD marked as Appendix BII	Alignment plan enclosed in the Digital form in CD is PDF Format. Requested the Authority to provide the Same in AutoCAD format.	As per RFP
197.	Appendix B-V of Schedule B	Details of Service Road. Length of Service Road in RHS = 31.45 Kms. Length of Service Road in LHS = 31.45	But as per the Improvement Schedule given in the Appendix BI of Schedule B, The length of SR is as below. LHS= 24.2 Kms	Correct length of service road is 62.9 km as per Schedule B Appendix B-V

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Kms. Total length of Service road = 62.90 Km	RHS= 24.2 Kms OS = 1.05 Kms. Total = 49.45 Kms. Requested the authority to provide the correct length of SR.	
198.	Appendix B-X of Schedule B	Details of Proposed Flyover SI No 3. Flyover at Ch:190+250 =3 lane (1X14.0)= One Sided Flyover	SI no 67 in the table of improvement schedule given in the Appendix BI of Schedule B shows the Type 9, which is applicable for 4 lane structure. As the Proposed structure is 3 lane one sided structure, the applicable CS for this Section is Type 16. Please Confirm.	It is a 3 lane one side flyover.
199.	General	Existing & proposed Structures	Please provide the details of foundation, substructure & super structure for proposed MJB/ MNB /VUP /ROB /GS & Culverts. GAD for structures (Grade Separator/PUP/VUP/Bridges / ROBs) is not given. It is required for assessing the structure cost. Pls. provide the same.	It is a DBFOT project. Refer to Feasibility Report; the span arrangements are indicative for the guidance of the concessionaire. The minimum length of the bridge shall not be less than the total length of the bridge indicated in Schedule B
200.	General	Soil Investigations reports	Pls. provide the geotechnical report for all structures and also for entire corridor including the rock profile underneath.	It is a DBFOT project soil investigation report is enclosed only for reference.
201.	Appendix A	Location wise details of culverts are not given in schedule A. However only number of culverts (pipe, slab, arch and box) are mentioned.	For culverts to be widened or reconstructed as given in schedule B Appendix BXII, please provide the details of present status in Schedule	It is a DBFOT project.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			A.	
202.	Appendix AVI	As per Appendix AVI in Sch –A , an overpass is given at Ch. 244+750 but there is no mention of same over pass in Sch B	Please provide the scope of existing overpass.	As per Schedule
203.	Appendix AVI (a,b and c)	As per Appendix AVI (a,b and c) in Sch – A , list of existing VUP, PUP and CUP is given but there is no mention of the same in Sch B.	Please clarify the scope of existing VUP, PUP and CUP.	As per Schedule
204.	Appendix AV	As per Appendix AV in Sch –A , there exist one ROB at Ch. 329+142 and and two RUB at Ch 285+020 and 492+632 but there is no mention of those ROB and RUBs in Sch B.	Please clarify the scope of those existing ROB and RUBs.	As per Schedule
205.	Appendix B XVI and Appendix BIII	As per Appendix BXVI in Sch- B, ROB is proposed @ 256+777 and the location of the same is given in realignment. But as per Appendix B III, Ch 256+777 does not lie in realignment.	Please clarify the location of proposed ROB.	Chainage 256+777 lies a realignment for 2 lane ROB
206.	Appendix AVII and Sch B	As per Appendix AVII in Sch-A , the minor bridges 261+025,261+365,351+295, 365+980,418+810,448+095,559+765 and 525+733 chainages are having existing width which are not matching two lane standards. Also there is no mention of widening of these existing minor bridges in Sch-B.	Please clarify the scope of widening for existing minor bridge.	As per manual of specifications.
207.	Sch B Minor bridge (A) and (B)	As per Construction of new Minor bridge (A) in Sch-B, new 3 lane bridge is proposed for the minor bridges @	Please clarify the proposed scope of minor bridge @ 421+106.	New 3 lane bridge

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		421+106 chainage but as per Rehabilitation/repair/Widening of existing Minor Bridges (B), new 2 lane bridge is proposed for the minor bridge at same location.		
208.	Sch B Minor bridge (A) and (B)	As per Construction of new Minor bridge (A) in Sch-B , new 4 lane bridge is proposed for the minor bridges @ 463+565 chainage but as per Rehabilitation/repair/Widening of existing Minor Bridges (B) , new 2 lane bridge is proposed for the minor bridge at same location along with widening of existing bridge.	Please clarify the proposed scope of minor bridge @ 463+565.	New 4 lane bridge
209.	14.3	.Provisional Certificate	If the concessionaire has completed construction of at least 75% of the Total Length of the Project Highway. In that case can concessionaire be provided with the Provisional Certificate? Kindly clarify	As per DCA The length should be continuous.
210.	11.2	The cost of such shifting shall be borne by the Authority or by the entity owning such utility, if the authority so directs, and in the event of any delay in shifting.....	NHA and the Concessionaire are signatories to this Concession agreement and are bound by its conditions. However reimbursement of the cost of utility shifting to the concessionaire may also be the liability of the entity owning such utility/ies within the Project Site. How can such entity, not governed by the Concession agreement, be held liable to the concessionaire, and	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			whether the concessionaire's interests are covered in case the entity owning the utility/ies refrains itself from making the payment in full Please clarify.	
211.	6.3	Competing Roads:: The Authority shall.....at any time before 10 th anniversary of the Appointed Date, construct or cause to.....any Competing Road; provided.....if the average traffic on the Project Highway in any year exceeds 90% of its designed capacity.....	We presume the authority or any government instrumentality may construct Competing Road 10 years after Appointed Date. From the definition the Competing Road seems to be an Alternative Route of the Project Highway. This may strongly facilitate the leakage of traffic from the Project Highway. Hence we request to omit such clause or not to give any permission to any government instrumentality and the authority itself should not take up such construction of Competing Road during the Concession of the Project Highway. Please confirm.....	As per DCA
212.	29.2.2	Target Traffic	Variation of actual traffic from Target Traffic results in reduction of concession period. Therefore we request you to increase the target traffic reasonable to avoid such reduction of concession period. Please Clarify.....	As per DCA
213.	11.1	and the Authority shall, upon written request from the Concessionaire, initiate and undertake at the Concessionaire's cost, legal proceedings for acquisition of any right of way necessary for such diversion.	All costs, including all legal proceeding costs, should be borne by NHAI for acquisition of any ROW for necessary diversions required to maintain all existing roads, right of way or utilities.	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			Please confirm.	
214.	16.3.2	all costs arising out of any Change of Scope Order issued during the Construction Period shall be borne by the Concessionaire, subject to an aggregate ceiling of 0.25% (zero point two five percent) of the Total Project Cost. Any Cost in excess of the ceiling shall be reimbursed by the Authority.....	We request NHAI to reimburse the entire cost incurred by the Concessionaire due to Change of Scope in actual. Please confirm.	As per DCA
215.	9.3	The Performance Security shallbe released earlier upon the Concessionaire expending on Project construction an aggregate sum that is not less than 40% (forty per cent) of the Total Project Cost;.	As per the clause, Performance Security will be released to concessionaire after expending 40% of NHAI Total Project cost. We request NHAI to reduce it to 20% of NHAI TPC as in line with other projects. Please Confirm.....	Clause 9.3 of the Concession Agreement already provides for the release of Performance Security upon the Concessionaire having expended an aggregate sum that is not less than 20% (twenty per cent) of the Total Project Cost.
216.	27.1.2	Rule 3 of National Highways Fee Rules 2008.....	Please confirm if the fee rules specified in this clause over ride the ones in Schedule R. If no, please confirm if Fee Rules 2011 are not applicable for this agreement.	Please see the Addendum
217.	4.3	at the rate 0.2% of the performance security for each day's delay.....	Kindly reduce the extent of damages to 0.1% same as for the damages for delay by the Authority.	As per DCA.
218.	Volume-I (ITB); Appendix-II	Bank Guarantee for Bid Security	With reference to your RFP-Bid Document-Volume-I, Appendix-II for Bank Guarantee for Bid Security, we wish to bring to your kind notice that as per the RBI guidelines issued to banks for issuance of Bank Guarantee, it is mandatory to add following note at the end of the Bank Guarantee. Further in all the other recent NHAI projects this note has been included in the Bank Guarantee	Notwithstanding Clauses as per RBI guideline may be accepted by NHAI

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			format by issuing a separate addendum. In view of above we request you to issue addendum to this effect as under. The following para needs to be added at the end of serial no. 13 of the Appendix -II of RFP: Notwithstanding anything contained hereinabove, i. Our liability under the Bank Guarantee shall not exceed Rs.----- ----- Crores (in words), ii. The Bank Guarantee shall be valid upto (date), iii. We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before -----.	
219.	Volume-II; Article 6.3	Obligations relating to Competing Roads The Authority shall procure that during the subsistence of this Agreement, neither the Authority nor any Government Instrumentality shall, at any time before the 10th (tenth) anniversary of the Appointed Date,... Article 48 - Definitions “Competing Road” means a road connecting the two end points of the Project Highway and serving as an alternative route thereof, such road being an existing paved road, which has been widened by more than 2 (two) metres of paved road for at least 75% (seventy five per cent) of the total length thereof at any time after the date of this	The definition of "Competing Road" (Article 48) is too limited: it only compensates for roads that are built from end to end of the project. With such a long project, it doesn't cover any road that can be built to join two intermediate points (say, for example, that they decide to build a parallel road between Guna and Shivpuri).	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Agreement,...		
220.	Volume-II; 10.8	Geological and archaeological finds ...For the avoidance of doubt, it is agreed that any reasonable expenses incurred by the Concessionaire hereunder shall be reimbursed by the Authority. It is also agreed that the Government shall procure that the instructions hereunder are issued by the concerned Government Instrumentality within a reasonable period.	What is the definition of “reasonable”?	Provision is self-explanatory.
221.	Volume-II (DCA); 11.2	Shifting of Obstructing utilities: GAIL High Pressure Pipe line from Hazira to Vijay nagar NCF.	GAIL high pressure gas pipe line running parallel to project highway through ROW at many of the stretches. Kindly clarify the responsibility of the Concessionaire regarding shifting of GAIL Pipe line.	As per DCA
222.	Volume II – 12.7	Construction of service roads by the Authority The Authority shall, at any time after the 8th (eighth) anniversary of the Appointed Date, be entitled in its discretion to undertake at its cost, construction of service roads on the Project Highway in accordance with the specifications and standards applicable to other district roads (ODRs) in the State...	This article states that the Concessionaire shall have the obligation to maintain the additional service roads built by the Authority (after the 8th anniversary of the Appointed Date). This should be a Public Authority change under compensation mechanisms specified under Article 16.	As per DCA
223.	Volume-II; 16.2.3	...In the event that the Parties are unable to agree, the Authority may, by issuing a Change of Scope Order, require the Concessionaire to proceed with the performance thereof pending resolution of the Dispute, or carry out the works in accordance with Clause 16.5.	If the change is not acceptable due to safety or other considerations, how is the concessionaire protected?	Provision is self-explanatory.
224.	Volume-II; 17.1.2	The Concessionaire shall remove promptly from the Project Highway all surplus construction machinery and materials, waste materials (including	Hazardous materials should be considered under unforeseen/compensation events with specific process and remuneration.	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		hazardous materials and waste water), rubbish and other debris (including, without limitation, accident debris) and keep the Project Highway in a clean, tidy and orderly condition...		
225.	Volume-II; 27.6.	Reappropriation of excess Fee: 27.6.1 In the event that the average daily traffic of PCUs in any Accounting Year shall have reached a level equivalent to 120% (one hundred and twenty percent) of the designed capacity specified in Clause 29.2.3 (the “Traffic Cap”), the Fee levied and collected from the traffic exceeding the Traffic Cap shall, notwithstanding anything to the contrary contained in this Agreement, be deemed to be due and payable to the Authority in accordance with the provisions of Clause 27.6.2 If traffic in any Accounting Year exceeds the Traffic Cap, the Concessionaire shall be entitled to collect and appropriate the Realisable Fee for traffic not exceeding the Traffic Cap and for all traffic exceeding the Traffic Cap, the Concessionaire shall collect and deposit the same into the Safety Fund within 60 (sixty) days of the close of the relevant Accounting Year; provided that the balance remaining in respect of the excess traffic of the last Accounting Year of the Concession Period shall be credited to the Safety Fund within 30 (thirty) days of the Transfer Date.	- How is the Excess Fee calculated? Is it just a percentage of the total revenues, or actually counting the vehicles above the design capacity? - Does Target Traffic and Design Capacity (measured in PCUs) include all vehicles or only toll paying vehicles?	Provision is self-explanatory.
226.	Volume-II; 27.8	Fee collection points: Fee shall ordinarily be collected at Toll Plazas from vehicles crossing the Toll	Can the Concessionaire only set up booths on a 10 km radius of the Toll Plaza or less?	Provision is self-explanatory.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Plazas and using the whole or part of the Project Highway; provided that for preventing evasion of Fee by any vehicle circumventing one or both of the Toll Plazas and using the whole or part of the Project Highway located between such Toll Plazas, the Concessionaire shall be entitled to set up at its own risk and cost, and in consultation with the Independent Engineer, its temporary or permanent Fee collection booths, as may reasonably be necessary for preventing such evasion. For the avoidance of doubt, the Concessionaire hereby acknowledges and agrees that it shall not determine or collect Fee from Users who only use part of the Project Highway which is situated between the two Toll Plazas. It is further acknowledged and agreed that the restrictions hereunder shall not extend beyond a distance of 10 (ten) kilometres from the Toll Plazas and the provisions of this Clause 27.8 shall be so enforced as to minimise inconvenience to Users who are not liable to payment of Fee.		
227.	Volume-II; 27.9	Additional charge for evasion of Fee: In the event that any vehicle uses the Project Highway without payment of Fee due, the Concessionaire shall be entitled to determine and collect from such vehicle the Fee due and an equivalent amount towards predetermined liquidated damages for unauthorised use of the Project Highway; provided that the determination and collection of such liquidated damages shall be at the risk and cost of the Concessionaire and the	When collecting the fee from a vehicle that evaded it, please confirm that the Concessionaire is entitled to twice the fee?	Provision is self-explanatory.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Authority shall not in any manner be liable on account thereof; provided that upon failure of the driver of such vehicle to pay Fee, the Concessionaire may prevent such vehicle from using the Project Highway and may have such vehicle removed therefrom.		
228.	Volume-II; Article 29	Effect of Variation on Traffic Growth	Are the Target Traffic (§29.1.1) and design capacity (§29.2.3) per direction or total?	Provision is self-explanatory.
229.	Volume-II (DCA); Article 48	Definitions	Financial Close means the fulfillment of all conditions precedent to the initial availability of funds under the financing agreements . The Concessionaire would not be able to arrange for funds till all the conditions precedent are fulfilled. We request the removal of the words ' to the initial availability of funds under the financing agreements ' from this clause.	As per DCA
230.	Volume-III; Schedule-A; Appendix A-II	Pg 1 of Volume III	1 st page of Appendix A-II, sr. no. 1 to 34 (Existing Right of way) is not visible as covered by the map in Appendix A-1. Request to provide the same.	Please see the Addendum
231.	I / Introduction / 1.1.1 & III / Appendix B-VII	As per these two reference clauses Length of the project highway is 332.46 Km & 345.300 Km. Also End Chainages are 566.450 & 577.500 respectively.	Project Lengths & End Chainages are not matching , Please clarify the same.	Project length is 332.46 km including Guna bypass and end chainages 566.450 (start of Dewas bypass)
232.	III / Schedule B / Annex - I / 1.1	The rights and obligations of the Concessionaire under this agreement, in respect of the Guna Bypass section shall commence only after the Right of Way with respect to the Guna Bypass section has been granted to the Concessioanire and that no part of the Guna Bypass	When the Authority will provide the Right of Way with respect to the Guna Bypass section?	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		section shall be included in the Appendix specified in Clause 10.3.1		
233.	III / Schedule C / Annex - I / 2 (g) VI	The paved carriageway shall be 18.2 m wide excluding median.	The paved carriageway of 18.2 m also includes 0.6 m both side edge strip which is a part of 12 m median. Please clarify.	Yes
234.	III / Schedule B / Appendix - B-XIII / A (4)	Street lighting shall be provided in urban stretches / built up areas, grade separators, underpasses, toll plazas and its approaches, and bus stops as per Manual of Specifications and Standards.	Please provide locations of urban stretches / built up areas where the lighting should be provided.	As per Schedule in manual of specifications.
235.	III / Schedule B / Appendix - B-I / 2 (117)	At Existing CH. 421.286 Proposed structure configuration is new 3 lane bridge.	At same chainage i.e. CH. 421.286, in rehabilitation details it is given New 2 lane bridge on LH side.	New 3 lane bridge
236.	III / Schedule B / Appendix - B-XII	From SH-18 junction of dewas bypass to CH. 577.500 - Type 7 is applicable.	C/S type 7 is 2 lane with 1.5 m paved shoulder and 1.0 m granular shoulder on either side. What is type of pavement? As existing Dewas bypass is having rigid pavement.	Dewas bypass has been deleted.
237.	III / Annex - I , 2 a)	Type 6 - 6 laning for urban section as per Manual and 2.5 m median with NJB at PUP location.	Please clarify as Manual mentions IRC SP : 84 -2009 or IRC SP : 87 -2010. As IRC SP 84 - 2009 do not describe 6 laning of section.	As per Schedule
238.	I / Introduction / 1.1.1 & III / Schedule R	Location (Chainage) of 5th Toll Plaza as per Schedule C is 524 Km & Schedule -R is 526 Km.	Location of 5th Toll Plaza is not matching, Please Clarify the same.	Correct location of toll plaza is 526.000 km
239.	III / Schedule - R	Project Length mentioned in ITB is 332.46 Km (Including Guna Bypass) & As per Schedule R it is 336.50 (Including Guna Bypass)	Please Clarify The Same.	Corrected length is 332.460 km (including Guna bypass)
240.	III / Schedule B / 4.4 & Appendix B - IV	Appendix-B-I (Typical Cross Sections) represent service road length of 24 Km where as Appendix B-V (Service Roads) represents service road length of 31.450 Km.	Please Clarify the same.	Total service road length on both side is 62.900 km
241.	Sch. A / Page-17	The length mentioned as 30.4 against		29.451 km

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		the Sl no 201, shall be 29.45 KM		
242.	Sch. B	Existing Paved shoulders of 2*1 m has been mentioned from Km 512.800 to Km 566.450 whereas at site continuous Paved shoulders are not present at this length against the Sl. no 101.		It is a DBFOT project.
243.	Sch. B / Page-35	The project includes additional length of 9.8 Km 2 lane with paved shoulder of Dewas Bypass , As per our understanding and alignment plan , this link is Green field development not the widening of existing Dewas bypass.	Please Clarify the same.	Dewas bypass has been deleted.
244.	Sch. B / Page-35	The title of Clause is Alignment Plan and Longitudinal section and whereas in description written as an alignment plan is given in soft copy , we have received the Plan and profile both in soft copy, Please explain that we have to follow the attached plan and profile both or Plan only	Please Clarify the same.	It is a DBFOT project however minimum FRL shall be maintained.
245.	Sch. B / Page-36	The construction stretches given in Appendix-B VI, are not matching at site. We have to decide the construction stretches as per our judgment or we have to go with as given in Appendix-B VI	Please Clarify the same.	It is a DBFOT project however minimum FRL shall be maintained.
246.	Sch. B / Page-37 to 43 and	In table No. 2 of TCS applicable chainage list at Sr. No. 93, TCS 10 is applicable for Ch. 256+500 to Ch. 257+300 but in table 1 (TCS description) TCS 10 is applicable only for Dewas bypass missing link ROB.	Please Clarify the same.	For 2 lane realignment portion TCS 10 shall be applicable.
247.	Sch. B / Page-38	4-lane existing Carriageway is present from Km 319+700 to 320+000, for this StretchTCS type-3 is proposed (i.e. 4-laning with LHS with 12m. median). Is this correct?	Please Clarify the same.	Km 319+700 is the start of Guna bypass

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

248.	Sch. B / Page-38 to 43	In the description of TCS-17, the width of median is written as 0.5 m , it shall be 2.5 m.	Please Clarify the same.	Median width is 2.5 m
249.	Sch. B / Page-38 to 43	The length of cross-section for Toll Plaza are given as 1.0 Km, 1.25 Km,1.050Km, 1.170 Km and 1.200Km. Actual required length is less as per the specification given in IRC:SP:84(four laning manual). Pl clarify we can reduce the length of the cross-section for toll plaza or not and the length of other cross-sections will also changed accordingly.	Please Clarify the same.	The length of cross section for toll plaza as per manual of specification IRC SP 84. Balance length of cross section shall be previous or next accordingly.
250.	Sch. B / Page-38 to 43 and	In the TCS Schedule, for missing link at Sl. No 117, TCS-7 is mentioned. But more TCS will be required as one ROB of 1x 14.8 m is also proposed in this section (TCS-10 is applicable).	Please Clarify the same.	Missing link of Dewas bypass has been deleted.
251.	Sch. B / Page-40	As Appendix B-X Sr. No. 3 at design chainage Km 190+250 a 3 Lane Flyover (Width 1x14.0m) proposed but in Appendix B-I at Sr. No. 67 from Ch. 189+500 to Ch. 191+200 TCS type-9 is applicable which is for 4 lane Flyover/VUP.	Please Clarify the same.	3 lane flyover
252.	Sch. B/ Page-52	In the typical cross sections applicable chainage list at Sr. No. 53, TCS-6 is applicable for Ch. 158+820 to Ch. 160+440 but no PUP/CUP is proposed in this section as per Schedule B.	Please Clarify the same.	As per Schedule B
253.	Sch. B / Page-54	The proposed ROW mentioned is 60 m for total length of the project. (a) From Km 254-Km 257(Approx.), an realignment for ROB is given, we want to confirm that for this length (Two Lane C/way) also 60 m ROW will be provided or not. (b) Pl. clarify that for missing link also 60 m ROW is proposed?		60 m ROW proposed in 2 lane realignment. Missing link of Dewas bypass is deleted from scope of work.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

254.	Sch. B / Page-60	In the Minor Junction table the Ch. 33+945 is mentioned against Sl. No 21 & 22, It seems that Ch. Against sl. No. 22 is misprinted.		Sl. No. 22 it is 35+500
255.	Sch. B / Page-60	A VUP is proposed at Ch. 246+178 , whereas in P&P VUP is shown at Ch. 247+460.	Please Clarify the same.	VUP is proposed at chainage 247+460 and PUP is proposed at chainage 246+176
256.	Sch. B / Page-54 to 59 & page 62-66	A 3-lane flyover is proposed in Appendix B-X, Whereas in P&P drawing 6 lane flyover is shown and profile of both carriageway raised.	Please Clarify the same.	3 lane flyover
257.	Sch. B / Page-61&65	At the following Chainages PUP as well as Minor junctions both are proposed (1) Ch. 57+060 (2) Ch. 62+465 (3) Ch. 84+410 (4) Ch. 196+050 (5) Ch. 206+294 (6) Ch. 212+103 (7) Ch. 212+103 (8) Ch. 235+873	Please Clarify the same.	Junction shall be developed at cross road under PUP
258.	Sch. B / Page-66	In Appendix, (a) VUP is proposed at Ch 246+178 (b) PUP is proposed at Ch 246+176 Whereas in Plan and Profile drawing PUP is shown at Ch 246+176.		VUP is proposed at chainage 247+460 and PUP is proposed at chainage 246+176
259.	Sch. C / Page-146	Toll Plaza at existing Km 340 is proposed in Sch. C and in Appendix B-I, Sl. no 38 Toll plaza is also shown from Km 340+00 to 341+350. But as per the site hilly area is present up to Km 341+600. It is not possible to construct the Toll plaza at this location. Can Concessionaire change this location or not.		As per DCA
260.	Sch. C / Page-	In this it is mentioned that the rest area	Please Clarify the same.	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

	148	will be as per the drawing of Manual of specification and standards for Four laning. But in Manual IRC: SP: 84, no drawing is given for Rest Area.		
261.	Sch. C / Page-147	As per CA , lighting is to be provided at Bus Bays also but as per IRC: SP: 84 , nothing has been mentioned for lighting at Bus Bays.		As per DCA
262.	P&P drawing	In this the Title is given as Bus Bays/ Bus shelter and detail only Bus bays has been mentioned. Pl explain only Bus bays have to be provided or Bus bays with Bus shelters.	Please Clarify the same.	Bus bays with bus shelter
263.	P&P drawing	A ROB is proposed at Ch. 300+932, but in Plan & profile drawings Railway line is shown but ROB structure not shown in Profile.		ROB is shown in P&P drawing
264.	P&P drawings	In Plan & profile drawings Railway line is shown but existing RUB not shown.		RUB is shown in P&P drawing
265.	Sch. B / Page-72	As per proposed profile for Km 14+300 to Km 17+700 (In Kolaras Bypass) , embankment height near 10m to 15m has been proposed and in this stretch many minor bridge and PUP/CUP 4 lane with 12m depressed median has also been mentioned. Hence It is not possible to construct the highway without retaining wall within 60m ROW (Schedule B appendix B-VII). Retaining wall of minimum 5 m height will be required throughout. Retaining wall is not shown in P&P drawings.	Please Clarify the same.	It is a DBFOT project concessionaire may assess the requirement of retaining wall to accommodate required cross sectional elements in 60 m ROW.
266.	Sch. B / Page-72	The existing Span of the bridge no 349/6 at Sl. No 29 is 2x12m whereas proposed span for new bridge is 2x8.8m. Proposed span is less than the existing span.	Please Clarify the same.	Span arrangement is same as per Schedule A-VII and B-XIV

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

267.	Sch. B / Page-74	The existing Span of the bridge no 356/6 at Sl. No 32 is 5x8m whereas proposed span for new bridge is 2x18.5m.	Please Clarify the same.	As per Schedule
268.	Sch. B / Page-49 & 70	The existing Span of the bridge no 461/2 at Sl. No 69 is 3x8m and skew in nature whereas proposed span for new bridge is 3x13.6. As per site this much of span is not required.	Please Clarify the same.	As per Schedule
269.	Sch. B / Page-68	In the Appendix B-XIII, The Bridge no 422/4 is shown to be constructed on Service road also, This is a Major Bridge, as per IRC:SP:84, Major bridge is not required to construct on Service road.	Please Clarify the same.	As per Schedule
270.	II & III / Article 29 & Schedule - R		As the concession agreement of Guna Bypass signed on a toll basis, then will there be reduction of concession period in case traffic exceeds design capacity. Or vice versa? And what will be its impact in getting the right to access of Guna bypass?	As per DCA
271.	P&P drawings	Alignment provided in P&P drawings are not meeting the Manual (Schedule –D) Requirements (IRC:SP:84) i. Design speed of 50kmph is provided at ch.190280 (proposed flyover) ii. Vertical gradient exceeds the manual requirement (more than 2.5%). For example, Ch.78720 PUP approach , 100640 iii. At many locations Sight distance provided is less than even stopping sight distance. For example; 77780, 78880, 100340 etc., iv. Profile is not designed for Intermediate site distance as required. v. Where the existing road is followed sight distance provided is stopping sight distance / less than stopping sight	Please Clarify the same.	It is a DBFOT project concessionaire may design as per manual of specifications IRC SP 84

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		distance. vi. Hence design of vertical alignment requires complete review and modification according to manual requirements.		
272.	II / Article 11.3.3	For avoidance of doubt, any connecting road constructed prior to the appointed date and falling within site.....		As per DCA
273.	II / Article 12.7	... at any time after 8th anniversary of the appointed date, be entitled in its discretion to undertake at its cost, construction of service road on project highway in accordance with the specification and standards applicable to other ODR's in the state....	Please clarify, whether this construction of service road will not cater as a alternate road or in turn which will serve as bypass road to overpass / avoid the toll plaza on main carrigeway of project road.	As per DCA
274.	II / Article 28.2	A sum equal to 50% of the 'profit before tax' of the concessionaire as and when made, shall be earmarked for revenue shortfall loan.....	Please clarify that, can Concessionaire have right to modify the repayment schedule of Revenue Shortfall Loan, but prior to the expiry of the concession period	Provision is self explanatory
275.	II / Article 29.1.1	The authority acknowledge that the traffic as on April 1, 2021 is estimated to be 26668 PCUs per day (Target Traffic)	Please clarify that the target traffic mentioned should be taken as Annual Average Daily Traffic (AADT) of 2021 year or Average Dail Traffic (ADT) of April 1, 2021.	Provision is self explanatory
276.	10.3.2 of DCA	the Parties hereto agree that on or prior to the Appointed Date, the Authority shall have granted vacant access and Right of Way such that the Appendix shall not include more than 20% (twenty per cent) of the total area of the Site required and necessary for the Four-Lane Project Highway, and in the event Financial Close is delayed solely on account of delay in grant of such vacant access and Right of Way, the Authority shall be liable to payment	What is the current land acquisition status of the project Highway - Please furnish us the schedule of handing over of the encumbrance free land to the concessionaire.	Provision is self explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		of Damages under and in accordance with the provisions of Clause 4.2.		
277.	14.3.2 of DCA	The Parties hereto expressly agree that a Provisional Certificate under this Clause 14.3 may, upon request of the Concessionaire to this effect, be issued for operating part of the Project Highway, if at least 75% (seventy five per cent) of the total length of the Project Highway has been completed.	Is this 75% of Total length a continuous length or can be a sum of broken lengths. Please Clarify. Also, can we get Provisional Certificate even if way-side amenities are not completed?	As per DCA
278.	10.6	The Concessionaire shall bear all costs and charges for any special or temporary right of way required by it in connection with access to the Site.	We request to reimburse all additional costs, in actual, incurred by the Concessionaire towards special/temporary right of way for access to the site. Please confirm	As per DCA.
279.	Schedule B		Please provide the reconstruction length to be taken, which occurred due to change in Improvement in the Vertical Geometric of the Highway.	Plan and Profile drawing is given.
280.	Schedule B		Please provide the terrain classification with chainages.	As per P&P drawing
281.	Schedule B		Please provide geotechnical report.	Enclosed only for reference
282.	Schedule B		Please provide details of ground improvements to be considered.	As per DCA
283.	Schedule B		Please provide the Design speed to be considered for various section	100 km/hr
284.	Schedule B		Please provide GA drawings for Structures	Enclosed only for reference
285.	Railway Approvals		Please provide the status of approval from Railway authorities	GAD is under review of Railway Authorities.
286.	Volume-I, Clause.2.5.3	The Authority shall not be liable for any omission, mistake or error in respect of any of the above or on account of any matter or thing arising out of or	NHAI is aware that information available in Schedules forms the basis for submission of bid for concessionaire. We presume that any	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		concerning or relating to RFP, RFQ, the Bidding Documents or the Bidding Process, including any error or mistake therein or in any information or data given by the Authority	variation in this will be dealt in accordance with change in scope, please confirm.	
287.	Clause 2.15.1 Modifications/Substitution/Withdrawal of Bids	The Bidder may modify, substitute or withdraw its Bid after submission, provided that written notice of the modification, substitution or withdrawal is received by the Authority prior to Bid Due Date. No Bid shall be modified, substituted or withdrawn by the Bidder on or after the Bid Due Date.	Normally, Modifications / Substitution / Withdrawal of the Bid are permitted up to the deadline for submission of the Bid (i.e. up to time of submission of Bid) and are not restricted prior to the Bid Due Date. Kindly review and modify the provision as follows: <i>“The Bidder may modify, substitute or withdraw its Bid after submission, but (i) prior to the Bid Due Date; and (ii) on the Bid Due Date, provided that written notice of the modification, substitution or withdrawal is received by the Authority on /prior to Bid Due Date. No Bid shall be modified, substituted or withdrawn by the Bidder after the expiry of the period for submission of the Bid.”</i>	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

288.	Appendix - II	Bank Guarantee for Bid Security - Notwithstanding clause	While issuance of the Bank Guarantee, Banks insist on an additional clause at the end of the text of bank guarantee. This clause clarifies the amount and validity of the Bank Guarantee. We therefore request you to add the following clause at the end of to the Bank guarantee format - “Notwithstanding anything contained herein above: 1. Our Liability under this Bank Guarantee shall not exceed Rs. 28.15 Cr. (Rupees Twenty Eight Crores and Fifteen Lakhs Only). 2. This Bank Guarantee shall be valid upto ***** (Indicate date falling 180 days after the Bid Due Date), and 3. We shall be liable to pay guaranteed amount under this bank guarantee or part thereof only if we receive (if you serve upon us) a written claim or demand under this guarantee on or before ***** (indicate date falling 180 days after the Bid Due Date) at ***** (Bank Name)”	Notwithstanding Clauses as per RBI guideline may be accepted by NHAI
289.	Section II – Draft Concession Agreement Article 4.1.2 b)	The Concessionaire may.....b) issued the Fee Notification.	Issuance of Fee Notification as a Conditions Precedent by the Authority to the Appointed Date may not be applicable for a 4 laning project. Hence we request you to delete the same from Authority's Conditions Precedent to Appointed Date.	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

290.	Article 4.2 Damages for delay by the Authority	In the event that (i) the Authority does not procure fulfilment of any or all of the Conditions Precedent set forth in Clause 4.1.2 within the period specified in respect thereof and, subject to a maximum of 20% (twenty percent) of the Performance Security.	We request to add the following provision to Article 4.2: “Provided that the Concessionaire shall be entitled to terminate the Concession Agreement if such Condition Precedent is not fulfilled within the specified period.”	As per DCA
291.	Article 5.2.4	The Concessionaire shall procure that each of the Project Agreements contains provisions that entitle the Authoritybound by the same and not seek any relief or remedy whatsoever from the Authority in the event of Termination or Suspension.	Kindly modify this provision as under: “The Concessionaire shall procure that each of the Project Agreements contains provisions that entitle the Authority to step into such agreement, in its sole discretion, in substitution of the Concessionaire in the event of Termination due to Concessionaire Event of default. ”	As per DCA
292.	Article 5.7 Branding of the Project Highway	The Project Highway or any part thereof shall not be branded in any manner to advertise, display or reflect the name or identity of the Concessionaire or its It is further agreed that the Project Highway shall be known, promoted, displayed and advertised by the name of *****.	Kindly let us know the name by which the Project Highway shall be known, promoted, displayed and advertised.	The name is already there in DCA
293.	Article 6.2 Maintenance Obligations prior to Appointed Date	It is mentioned in Clause 6.2 that during the development period the Authority shall maintain the Project Highway at its own cost and expense so that its traffic worthiness and safety is at no time materially inferior as compared to its condition 7 days prior to the last date of	In this regard it may be clarified as to what is the mechanism for keeping a record and quantification of the condition of the Project Highway, 7 days prior to the last date of bid submission.	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		submission of bid and in the event of any material deterioration or damage other than normal wear and tear, undertake to repair themselves or pay to the Concessionaire the cost and expense , as determined by the Independent Engineer for undertaking such repair after the Appointed Date.		
294.	Article 6.3 Obligations relating to Competing Roads	Obligations relating to Competing Roads The Authority shall.....any Government Instrumentality shall, at any time before the 11th (Eleventh) anniversary of the Appointed Date, construct or cause to be constructed any Competing Road....shall not apply if the average traffic on the Project Highway exceeds 90% of its designed capacity specified in clause 29.2.3. Upon breach of its obligations hereunder, the Authority shall be liable to payment of compensation to the Concessionaire under and in accordance with Clause 35.4	In the event that a Competing Road is constructed or caused to be constructed by the Authority on or prior to the 11th anniversary of the Appointed Date, the Concessionaire will have to face material adverse effect as the traffic will be diverted to the Competing Road resulting in the loss of Fee collection. Therefore, we request you to modify the Clause in the following manner: “The Concessionaire shall, without prejudice to its other rights and remedies under this Agreement including Termination thereof, be entitled to receive compensation from the Authority under and in accordance with Clause 35.4” Such compensation shall be adjusted against the Premium, if any that the	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			Concessionaire has to pay to the Authority under this Agreement.	
295.	Article 7.1 (k) Representation and Warranties of the Concessionaire	It shall at no time undertake or permit any Change in Ownership except in accordance with the provisions of Clause 5.3 Equity during the Construction Period and two years thereafter Provided further that any such request made under clause 7.1(k) and / or Art. 48..... by a suitable objection letter from lenders.	In a Project Financing structure, the lenders have a charge over the 51% of the pledged shares that may be invoked with NHA approval in the event of default of the Concessionaire. In such an event, the Concessionaire would be in breach of said provision. Therefore, an exception needs to be carved out for such an eventuality. Kindly clarify.	As per DCA
296.	Article 10.2.5 Right of Way Licence, Access and Right of Way	The Concessionaire hereby irrevocably appoints the Authority (or its nominee) to be its true and lawful attorney, to execute and sign in the name of the Concessionaire a transfer or surrender of the License granted hereunder at any time after the Concession Period has expired or has been terminated earlier in terms hereof, a sufficient proof of which will be the declaration of any duly authorised officer of the Authority, and the Concessionaire consents to it being registered for this purpose.	We request NHA to make the following amendments: “The Concessionaire hereby irrevocably appoints the Authority (or its nominee) to be its true and lawful attorney, to execute and sign in the name of the Concessionaire a transfer or surrender of the License granted hereunder at any time after the Concession Period has expired or has been terminated earlier in terms hereof, a sufficient proof of which will be the declaration of any duly authorised officer of the Authority, and the Concessionaire consents to it being registered for this purpose;	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			provided however, that Termination Payments (if applicable) shall have been paid in full by the Authority to the Concessionaire.”	
297.	Article 10.3.4 Procurement of the Site	The Authority shall make best efforts to procure and grant the Right of Way to the Concessionaire in respect of all land included..... from the 91st (ninety first) day of the Appointed Date and until such Right of Way is procured.	1. The words no later than 90 days seem to have been omitted from the first line. Request the following amendment – The Authority shall make best efforts to procure and grant <u>no later than 90 days</u> the Right of Way to the Concessionaire.... 2. The clause mentions that in case of delay in land acquisition, the Authority shall be liable to pay damages. In the event damages are paid by the Authority, the Concessionaire shall have to complete all Construction works before the Project Completion Date. This ultimately transfers the land acquisition risk to the Concessionaire. The delay in land acquisition will impact the Project Milestones, the Scheduled Six Laning Date and the overall Concession	It appears that the prospective Bidder has erroneously sought the query since the project does not envisage six laning as mentioned in the Query. However, provision as mentioned in the DCA remains unchanged.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			Period. Since there is no compensation for the time delay, we request that a suitable extension in the Concession Period be provided to the Concessionaire for the period of delay. For instance, if there is a 6 month delay in land acquisition, though the Authority will be liable to pay damages, it will be unrealistic for the Concessionaire to complete the project in time. As a result, we will end up paying damages too for delay in project completion.	
298.	Article 11.3.2 New Utilities and Roads	The Authority may, by notice require the Concessionaire to connect any adjoining road to the Project Highway..... The maintenance of such connecting portion shall be undertaken by the Concessionaire in accordance with the provisions of Clause 17.1.3	Maintenance of adjoining roads can adversely affect the financial viability of the project. Therefore, maintenance of adjoining roads should not be the obligation of the concessionaire.	As per DCA
299.	Article 11.3.3 New Utilities and Roads	The Authority may by notice require the Concessionaire to connect, through a paved road.....and maintained by the concessionaire upon Advance Payment of the cost to be made by the beneficiary entity in accordance with the amount and period as determined by the Independent Engineer.	Kindly modify the following clause as follows; “The Authority may by notice require the concessionaire to connect, through a paved road.....and maintained by the concessionaire upon Advance Payment of the cost to be made by the beneficiary entity in	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			accordance with the amount and period as determined by Independent Engineer in consultation with the Concessionaire "	
300.	Article 11.4 Felling of Trees	The Authority shall assist the Concessionaire in obtaining the Applicable Permits for felling of trees to be identified by the Authority.....deem appropriate	The obligation of obtaining the Applicable Permit for felling of trees & other Clearances related to Ministry of Environment & clearances Forest should be with the Authority and the assistance to be done by the Concessionaire. The Concessionaire will do actual feeling of trees but the permit has to be obtained by the Authority. Thus we request the clause to be modified as follows: <i>The Concessionaire shall assist the Authority in obtaining the Applicable Permits for felling of trees to be identified by the Authority.....deem appropriate.</i>	As per DCA
301.	Article 17.8.1 Second paragraph	Notwithstanding anything contained in this agreement, should the actual traffic exceed the design capacity, or rectification as estimated by the Independent Engineer, for the balance period of the concession.	Kindly modify the paragraph as follows: Notwithstanding anything contained in this agreement, should the actual traffic exceed the design capacity, during any year or part thereof and the Concessionaire fails to repair or rectify any defect or deficiency set forth in the Maintenance Requirements within the period	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			specified therein, it shall be deemed to be in breach of this Agreement and the Authority shall be entitled, from such date, to recover Damages, to be calculated and paid for each day of delay until the breach is cured, at the higher of (a) 0.5% (zero point five per cent) of Average Daily Fee, and (b) 0.1% (zero point one per cent) of the cost of such repair or rectification as estimated by the Independent Engineer, for the balance period of the concession.	
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Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

302.	Article 24.2.2	Upon Termination under Clause 24.2.1, the Authority shall be entitled to encash, the Authority shall be entitled to encash therefrom an amount equal to Bid Security.	Kindly modify the clause as follows: Upon Termination under Clause 24.2.1, the Authority shall be entitled to encash the Bid Security and appropriate the proceeds thereof as Damages; provided, however, if Financial Close has not occurred solely as a result of the Authority being in default of any of its obligations under Clause 4.1.2, it shall, upon Termination, return the Bid Security forthwith along with Damages equal to 25% (twenty-five per cent) thereof. For the avoidance of doubt, it is expressly agreed that if the Bid Security shall have been substituted by Performance Security, the Authority shall be entitled to encash there from an amount equal to Bid Security for Concessionaire Default. If the Authority is in default of any of its obligations under Clause 4.1.2, it shall return the performance security to the Concessionaire along with damages equal to 25% (twenty-five per cent) of Bid Security amount	
303.	Article 29.2.3 Effect of Variation in Traffic Growth	Modification in the Concession Period Notwithstanding anything to the contrary..... that may be required	We understand that if the actual average traffic exceeds the designed capacity and the Concessionaire agrees to take up capacity	Provision is self-explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		to yield the concessionaire a post-tax return on equity(Equity IRR) of 16% per annum, such assessment being made at an assumed debt equity ratio of 70:30; such extension of Concession Period shall be however limited to 5 (five) years. For avoidance of doubt it is stated that there shall be no reduction in the concession period as originally accepted.	augmentation then as per Clause 29.2.3, the Authority may grant it an extension in the Concession Period that may be required to yield the Concessionaire a post tax return on equity of 16% per annum. In such a scenario, the original reduction in the Concession period (if any, by virtue of Clause 29.2.2) shall be ignored and the Concession Period shall be increased from the original Concession period. Kindly confirm whether our above understanding is correct. Also kindly clarify whether the additional premium amounting to 25% of the Realisable Fee already paid by the Concessionaire in lieu of reduction (if any, by virtue of Clause 29.2.2) will be reimbursed in the event the Concessionaire undertakes to carry out capacity augmentation.	
304.	Article 29.2.3 Effect of Variation in Traffic Growth	Notwithstanding anything to the contrary..... that may be required to yield the concessionaire a post-tax return on equity(Equity IRR) of 16% per annum, such assessment being made at an assumed debt equity ratio of 70:30;	We request you to clarify whether post tax return on Equity IRR of 16% per annum shall be computed only for the additional cost incurred by the Concessionaire for capacity augmentation or on the total equity expended by the Concessionaire for the Project including the cost of	Provision is self-explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			capacity augmentation.	
305.	Article 30.1.1	... provided that in the event of the concession period being reduced to 12 Years, the additional tollway will be opened for traffic after the 8 th Year...	The reference to reduced concession period of 12 years seems to be misplaced; request you to kindly delete the same.	The referred provision is not there in the DCA
306.	Article 30.2 (a) & (b)	In the event of the Authority or any Government Instrumentality constructing or causing construction of any Additional Tollway, the following shall apply: (a) if the Additional Tollway is proposed to be opened to traffic between the 8th (eighth) and the 12th (twelfth) anniversary of the Appointed Date, the Authority shall, by notice to be communicated before the 8th (eighth) anniversary of the Appointed Date, require the Concessionaire not to undertake Six-Laning and to operate the Six-Lane Project Highway for a Concession Period of 12 (twelve) years. Upon delivery of such notice, the Concession Period shall be deemed to be 12 (twelve) years for purposes of this Agreement;] (b) if the Concession Period is reduced to 12 (Twelve) years and the Additional Tollway is opened to traffic between the 8th (eighth) and the 12th (twelfth) anniversary of the Appointed Date, the Concessionaire shall be entitled to an additional Concession Period which shall be equal in duration to the period	Kindly delete the provisions as it may adversely impact the financial viability of the Project	The referred provision is not there in the DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		between the opening of the Additional Tollway and the 12 th (Twelfth) anniversary;		
307.	Article 31.3.1 (g)	Premium due and payable to the Authority;	Kindly clarify whether the Premium to be paid forms part of the Concession Fee specified at Clause 31.3.1 (e). If Yes, please delete Clause 31.3.1 (g)	As per DCA
308.	Article 35.4.1 Compensation for Competing Roads	In the event that an Additional Tollway or a Competing Road, as the case may be, is opened to traffic in breach of this Agreement, the Authority shall pay to the Concessionaire, for each day of breach, compensation in a sum equal to the difference between the average daily Realisable Fee and the projected daily Fee (the “ Projected Fee ”) until the breach is cured.....For the avoidance of doubt, the Average Daily Fee for the purposes of this Clause shall be the amount so determined in respect of the Accounting Year or period, as the case may be, occurring prior to such opening or operation of an Additional Tollway or a Competing Road, as the case may be.	No time period is prescribed under Clause 35.4 regarding the payment of compensation by the Authority. Kindly clarify whether the compensation is to be paid weekly or monthly?	Provision is self explanatory
309.	Article 37.1.1 (c)	the Concessionaire does not achieve the latest outstanding Project Milestone due in accordance with the provisions of Schedule-G and continues to be in default for 90 (ninety) days;	Kindly delete this clause as there are suitable provisions for penalising the Concessionaire for non achievement of respective milestones. Further the Concessionaire may complete overall milestone as per Schedule G even if the given milestone is not achieved	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			within 90 days period	
310.	Article 40 Assignment and Charges (40.2 (b) Permitted assignment and charges)	Mortgages/pledges/hypothecation of goods/assets other than Project Assets and their related documents of title, a charge on the Escrow Account arising or created in the ordinary course of business of the Project Highway, and as security only for indebtedness to the Senior Lenders under the Financing Agreements and/or for working capital arrangements for the Project Highway.	In order to part finance the debt component of the total project cost, the Concessionaire may avail debt from any financial institutions, banks, multilateral lending agencies (which debt shall be subordinate in nature to the debt availed from the Senior Lenders) and accordingly will have to create a mortgage/pledge/hypothecation of goods/assets other than Project Assets as security for indebtedness to the such subordinate lender(s). Thus we request the clause to be modified as follows:- Mortgages/pledges/hypothecation of goods/assets other than Project Assets and their related documents of title, a charge on the Escrow Account, arising or created in the ordinary course of business of the Project Highway, and as security only for indebtedness to the Senior Lenders under the Financing Agreements and/or any financial institutions, banks, multilateral lending agencies, trusts, funds and agents or trustees of debenture holders, including their successors and assigns who have agreed to guarantee or provide finance to the Concessionaire as and by way of	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			subordinate debt to meet the part of the total project cost and/or for working capital arrangements for the Project Highway.	
311.	Definition	“Adjusted Equity” means the Equity funded in Indian Rupees and adjusted on the first day of the current month (the “Reference Date”), in the manner set forth below, to reflect the change in its value on account of depreciation and variations in WPI, and for any Reference Date occurring: (a) on or between the first day of the month of Appointed Date and the Reference Date; (b) from the Project Completion Date and until the 4th (fourth) anniversary thereof, an amount equal to the Adjusted Equity as on Project Completion Date shall be deemed to be the base (the “Base Adjusted Equity”) and the.....between Project Completion Date and the Reference Date; (c) after the 4th (fourth) anniversary of Project Completion Date , the Adjusted Equity hereunder shall be a sum equal to the Base Adjusted Equity, reduced by 0.28% (zero point Two Eight per cent thereof at the commencement of each	For the purpose of calculating Adjusted Equity from Project Completion Date and until the 4th anniversary thereof, base Adjusted Equity is being revised at the commencement of each month following Project Completion Date to the extent of variation in WPI, however, after the 4th anniversary of Project Completion Date, the revision is not monthly, the WPI variation between Project Completion Date and Reference Date is being taken into account. We request you to make the following amendments: “after the 4th (fourth) anniversary of Project Completion Date , the Adjusted Equity hereunder shall be a sum equal to the Base Adjusted Equity, reduced by 0.28% (zero point Two Eight per cent) thereof at the commencement of each month following the 4th (fourth) anniversary of Project Completion Date and the	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		month following the 4 th (fourth) anniversary of Project Completion Date and the amount so arrived at shall be revised to the extent of variation in WPI occurring between Project Completion Date and the Reference Date	amount so arrived at shall be revised at the commencement of each month following Project Completion Date to the extent of variation in WPI occurring between Project Completion Date and the Reference Date”.	
312.	Definition	Change in Law means the occurrence of any of the following after the date of Bid: (e) any change in the rates of any of the Taxes that have a direct effect on the Project ;	Kindly clarify whether the below mentioned event constitute a Change in Law: “A permissible deduction/exemption which was previously available to the Bidder and had been taken into account by the Bidder in his Bid and which subsequently becomes unavailable.”	Provision is self explanatory
313.	Definition	Encumbrances	Kindly include physical encumbrances in the definition of Encumbrances.	As per DCA
314.	DCA, cl.12.7	Construction of service road by Authority	It is our understanding that concessionaire scope is limited to the routine maintenance of the service road and major maintenance or overlay will be taken care by NHAI. Also we understand that any such service road will be merged with main road at toll plaza location.	As per DCA
315.	Schedule-A, Appendix A-V	S No 99 – existing ROW mentioned is 4.056m	Seems typing error – please correct the same.	ROW is 40.56 m
316.	Schedule-A, Appendix A-VI (b)	Existing crust	Please inform the pavement crust for the Guna Bypass Section	It is a DBFOT project
317.	Schedule-B, cl.1.1	The paved carriageway shall be 18.2m.	Please check the same as normally for four lane road it is 17m.	As per Schedule

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

318.	Schedule-B, cl.4.2	An alignment plan of project highway is given at Appendix B-II	We understand that the alignment plan is only for the guidance purpose, same can be modified based on the actual design.	As per DCA
319.	Schedule-B, cl.4.1.4 (i) & Appendix B-XIV	The proposed span arrangement of the ROBs are tentative and subject to change as per the availability of railway boundaries/ requirement of railways.	It is the NHA's responsibility for preparing and approval of GAD, since GAD will be prepared considering the available ROW, this provision is not right. Please delete this clause.	As per DCA
320.	Schedule-B, cl.4.15	Entry/exist Ramp	Proposed ROW is 60m and in some places it is 30-40m, there is no way one can accommodate the entry/exist ramp as per the details of IRC84, please clarify.	Proposed ROW for whole stretch is 60 m
321.	Schedule-B, Appendix B-I	Typical cross section	We understand that the typical cross sections are only for the guidance purpose and concessionaire can develop the cross sections based on their own design in accordance with the Schedule-D. kindly confirm	As per DCA
322.	Schedule-B, Appendix B-V	Details of Service Roads	We understand that the length of service road is inclusive if transition length, please confirm.	Yes
323.	Schedule-B, Appendix B-I	Cross Section Type along the project highway – SI No 33 mentions cross types as 'Guna Bypass' – there is no typical cross section available for same.	Please confirm followings: a) No work of any kind has to be done in this section b) Whether the concessionaire will be exempted from paying the toll tax during and after execution for vehicles used on the project	As per DCA
324.	Schedule-C,	Project Facilities	Please confirm the status of land acquisition for Rest areas, Truck laybys, toll plaza etc	3A work in progress
325.	Schedule-C, (g)	Development of way side amenities	We understand that this is same as	Yes

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

	(I)		rest areas, please confirm.	
326.	1.	Recent NHAI guidelines for ROBs and safety	It is our understanding that concessionaire obligation to complete the project is in accordance with the provision of bid documents only. Any other policy related circular will not be mandatory. Please confirm. Further we need specific clarification related to below mentioned points: (a) Recently NHAI has issued a guideline for use of composite structure for ROB. (b) Recently NHAI issued a circular related safety and as per that certain provision has been made mandatory. Since this RFP is issued subsequent to the said circular, we believe that provision of this project document take cares of all such requirement. This is particularly important as certain provisions of the said circular may require the ROW more than 60m.	As per DCA
327.	4.	Permissions/Clearances	Kindly Let us know the status of permissions /clearances taken for the Project. Has the MoEF clearance been obtained by NHAI?	Under progress
328.	5.	Fee Rules; Rule 9 sub clause 3A of the National Highways Fee (Determination of Rates and Collection) Amendment Rules,	We understand that 50% discount to commercial vehicles is applicable only for the vehicles without national permit and that are registered in the	Please see the addendum

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		2011 reads as follows: A person, who owns a commercial vehicle (excluding vehicle plying under National Permit), registered with address on the Registration Certificate of a particular district and uses such vehicle for commuting on a section of National Highway, permanent bridge, tunnel or bypass, as the case may be, which is located within that district, shall be levied user fee on all toll plazas which are located within that district, at the rate of fifty percent of the prescribed rate of fee: Provided that no such concession shall be provided, if a service road or alternative road is available for user by such commercial vehicles	district where toll plaza is located and in addition to that these vehicles are not availing any other discount scheme such as return trip and monthly passes. Please confirm	
329.	6.	Fee Rules	Sub Rule 3 A of Rule 9 states that – <i>“A person who owns a commercial vehicle (excluding vehicle plying under National Permit), registered with address on the Registration Certificate of a particular district and uses such vehicle for commuting on a section of the National Highway, permanent bridge, tunnel and bypass, as the case may be, which is located within that district , shall be levied user fee on such toll plazas which are located within that district, at a rate of</i>	Please see the addendum

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			<i>fifty percent of the prescribed fee :</i> <i>Provided that no such concession shall be provided, if a service road or alternative road is available for use by any such commercial vehicle"</i> <i>The definition for Alternate road as per Fee Notification is as follows – "Alternate Road means such other road, the carriageway of which is more than 10 Meters wide and the length of which does not exceed the corresponding length of such section of National Highway by 20% thereof"</i> <i>The definition for Service Road as per Fee Notification is as follows – "Service Road means a road running parallel to a section of National Highway which provides access to the land adjoining such section of National Highway.</i> Service Road of 63 Kms is envisaged for the Project as per Schedule B of the Concession Agreement 1. Since service/slip roads are envisaged as above on NH-3, and therefore there would be no concession	
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Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			for commercial vehicle registered in the Districts, plying on NH-3. Kindly confirm. 2. In the case of NH-3, which is an open toll system, there are five proposed toll plazas and a user having a vehicle registered with address on the registration certificate of a particular district commuting in the same district shall be liable to pay 50% of the prescribed fee, if he uses the vehicle within that district only. In the event any local vehicle having local registration certificate avails the facility of NH-3 and commutes on NH-3 crossing more than one district and thereby crossing more than one toll plaza, it shall be liable to pay 100% of the prescribed fee, at each toll plaza. Kindly confirm whether our understanding is correct.	
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Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			<i>For e.g. – if the length of NH-3 falling within one district is 20 kms and the user is registered in the same district, and he is travelling say 72.210 kms crossing km 258.00 , the user fee will be as follows –</i> <i>User Fee = (Rate per Km* 20Kms*0.5) + (Rate per Km *52.210 Kms</i> 3. Please clarify whether the discount stated in the above clause is applicable for Frequent users also (Return ticket and monthly ticket discounts)	
330.	7.	Pavement design	Concessionaire may be permitted to adopt pavement designs for stage wise construction of bituminous layers for initial period of 10 years and subsequent upgradation with overlay for new and existing pavement	As per DCA
331.	8.	Reply to Queries	We understand that Reply to Queries shall also form part of the Bid	Yes

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			documents in addition to the Addendum to be issued by the Authority. Please confirm	
332.	Disclaimer Page 4	RFP is not an agreement, neither an offer nor invitation by the Authority-----	RFP should either be an offer or an invitation for Proposal. Please Clarify.	As per RFP
333.	Disclaimer Page 4, 2 nd Para Line - 9 to 11 and Appendix I Page 32	As per Disclaimer Clause The assumptions, assessments ----- -especially the Feasibility Report may not be complete, accurate, adequate or correct	Point No- 2 of Appendix-I (Letter Comprising Bid) is contradicting the Disclaimer Clause The Authority wants the bidders to certify the correctness of the information given by the Authority which the Authority is itself is not certain. In such as event, how can the bidder certify the correctness of the information of the Authority which they themselves are not sure of. Kindly Clarify on the same.	Provision is self explanatory
334.	RFP Vol I Clause 1.3 Page 11 & Recital E of the Concession Agreement Page 3	Signing of Concession Agreement – within 30 days of award of Letter of Acceptance (LOA) The Recital E in the Concession Agreement states the execution of the Concession Agreement requiring to be done within 45 days of the date of issue of the LOA	Kindly clarify which has to be considered	Please see the addendum
335.	RFP Vol I Clause 2.1.3 Page 12	The Feasibility Report of the of the Feasibility Report.	As it is impossible to conduct the surveys, investigations, traffic studies and other detailed examinations before submitting the bid. The Authority has to take the responsibility for the correctness of the Feasibility Report.	As per RFP
336.	RFP Vol I Clause 2.1.18 (b) Page 15	The Bidder shall provide an undertaking to NHA that the EPC works of the Project..... whichever is less.	Kindly Clarify if a separate undertaking has to be provided by the Bidder. Kindly provide the Format for the same.	No separate undertaking required.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

337.	RFP Clause 2.1.3 Page 12 RFP Vol I Clause 2.7.2 Page 19 & RFP Vol I Clause 2.11.2 Page 20	The Feasibility Report of the project is being provided only as a preliminary reference document by way of assistance to Bidders..... before submitting their Bids. The Draft Concession Agreement and the Feasibility Report provided by the Authority as part of the Bid document shall be deemed to be part of this RFP.	Kindly clarify whether the feasibility report, is the part of the RFP Kindly clarify whether it also forms part of the Enclosures of the Draft Concession Agreement.	Provision is self explanatory
338.	RFP Vol I Appendix I Point 13 Page 33-34	I/We further certify that no investigation by a regulatory authority is pending either against us or against our Associates or against our CEO or any of our Directors/Managers/employees	Kindly provide the list of regulatory authority" covered under this clause	Provision is self explanatory
339.	RFP Vol I Appendix I Point 31 (a) Page 35	The EPC Contractor Meet the minimum criterion set out in our RFQ for this Project	Kindly Clarify, whether the Bidder is required to provide the Firms names. In this scenario as per Clause 2.1.18 (b) Page 15, the Bidder is already providing an Undertaking to this effect. Kindly Clarify in this regard.	Yes, the Bidder is required to disclose the name of the EPC Contractor in terms of the RFP
340.	RFP Vol I Appendix II Page 36 to 39	"....." clause The format provided in the RFP for the Bank Guarantee for Bid Security does not adhere to the RBI guidelines issued to Banks for issuance of Bank Guarantee	The format provided in the RFP for the Bank Guarantee for Bid Security does not adhere to the RBI Guidelines issued to Banks for issuance of Bank Guarantee. Please confirm that the Banks can add the mandatory time limitation clause at the end of the Bank Guarantee as prescribed by RBI. The clause is as under: "Notwithstanding anything contained hereinabove, Our liability under the Bank Guarantee shall not exceed Rs._____ The Bank Guarantee shall be valid up to _____ We are liable to pay the guaranteed amount or any part thereof under this	Notwithstanding Clauses as per RBI guideline may be accepted by NHAI

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			Bank Guarantee only and only if you serve upon us a written claim or demand on or before_____” We further wish to inform you that in earlier bids, these lines were part of the format given by NHAI for Bid Bond Guarantee. Since, this is the mandatory clause to be put in by the banks as per the guidelines issued by RBI, therefore, the same should be allowed to be inserted at the end of the Bank Guarantee	
341.	DCA Clause 4.2 & 4.3 Page 13	Damages for delay by the Authority & Damages for delay by the Concessionaire	It is requested that the damages for delay by Concessionaire as per clause 4.3 should be similar to damages payable by the Authority as per clause 4.2 i.e. to be calculated at the rate of 0.1% of the Performance Security. Kindly Confirm.	As per DCA
342.	DCA Clause 5.1.4 (e) Page 14	Make reasonable efforts to facilitate the acquisition of land required for the purpose of the Agreement	Since the responsibility of Land acquisition lies with the Authority so request you to clarify the concessionaire role and responsibility in this regard.	Provision is self explanatory
343.	DCA Clause 6.2	Maintenance Obligations prior to Appointed Date	Kindly clarify if the “routine maintenance” includes minor repairs like pothole-filling, overlay, rehabilitation of failed road crust etc.	Provision is self explanatory
344.	DCA Clause 6.3 Page 20 & DCA Clause 30.1.1 Page 82	Obligation relating to Competing Roads Restriction on construction of additional Toll way	The clause states – “The Authority shall procure....before the <u>10th (tenth) anniversary</u>remedy of the concessionaire.” Whereas clause 30.1.1 states – “Notwithstanding anything to theat any time before the <u>17th (Seventeenth) anniversary</u> ...by 20% thereof.” Kindly clarify which clause is correct	Provision is self explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

345.	DCA Clause 10.3.2Page 30	Without prejudice to the provisions of Clause 10.3.1 Authority shall be liable to payment of Damages under and in accordance with the provision of Clause 4.2	It is indicated that the 'appendix' shall not include more than 20% of the total area. We understand that "Vacant access and right of way for a minimum of 80% of the total area will be granted to concessionaire on or before appointed date." Please Confirm.	Provision is self explanatory
346.	DCA Clause 11.4 Page 35	Felling of Trees	Since the cost of felling Trees will be borne by Authority, we understand that stump removal and shifting of felled trees including stacking them is the responsibility of Authority.Kindly confirm.	Provision is self explanatory
347.	DCA Clause 12.3 (c) Page 37	Within 15 days of receipt of the drawings,..... and may begin or continue Construction Works at its own discretion and risk.	Will the condition be applicable if appointment of IE is delayed. Please Confirm.	Provision is self explanatory
348.	DCA Clause 12.3 (e) Page 37	Drawings: No review for the same in any manner	In case of any modification suggested by Independent Engineer on the design and drawing submitted by Concessionaire resulting into design related defects/ damage the liability and obligation of the concessionaire should be relaxed, and if any defects observed due to the above suggestion; the concessionaire shall not be made solely responsible.	Provision is self explanatory
349.	DCA Clause 12.7 (e) Page 38	Construction of Service Road by Authority	Kindly specify the Quantum of Service road to be built after the 8 th anniversary of the appointed date. As the Quantum/Length of the Service Road is not known, it would not be possible to factor the O&M cost, that too after 8 th Anniversary of Appointed Date. Hence, the obligation to maintain the Service Road to be built by the Authority may kindly be	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			excluded from the scope of the Concessionaire Since these two items have an impact on EPC cost.	
350.	DCA Clause 16.2.2 (b) Page 46 & Page 47	Payment for Change of Scope	Kindly clarify during the change of Scope process whether the O & M cost is to be included. If not how this additional O & M cost incurred will be paid to the concessionaire.	Provision is self explanatory
351.	DCA Clause 17.1.2 Page 51	 it is agreed that the debris and material excavated shall be carried to and deposited at.....(to be decided in consultation with Independent Engineer)	We request the Authority to provide the exact location as it would have a direct implication on our EPC and O&M costs	As per DCA
352.	DCA Clause 23.1 Page 64	Appointment Of Independent Engineer	The IE is to be appointed within 90 days. We may mention that clause no 12.3 C will not apply in case of delay in appointment of IE. Please Confirm	Provision is self explanatory
353.	DCA Clause 24.1.1 Page 67	The Concessionaire.....it shall be entitled to a further period not exceeding 120 days.....calculated at the rate of 0.10% of Performance Security....or for a further period not exceeding 200 days.....specified in Clause 4.3	Kindly clarify the amount of damages payable in case of delay in Financial Close?	Provision is self explanatory
354.	DCA Clause 26.2.1 Para 2 Page 71	".....For the purpose of assessing the amount due for payment on such payment of premium, part of a month shall be deemed to be a full month"	The premium payable for part of the month should not deem to be a full month. Instead it should be for the actual number of days elapsed in that particular month and should be proportionate. Request to kindly change the provision.	As per DCA
355.	DCA Clause 28.1.1 Page 78	If the Realisable fee in any accounting year shall fall short of the subsistence revenue as a result of an indirect political event, a political event or an authority	As the events leading to Revenue Shortfall Loan are not in control of the Concessionaire, it is requested to consider granting the Revenue	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		default. As the case may be, the authority shall, upon request of the concessionaire, provide loans for meeting such shortfall at an interest rate equal to 2% above the bank rate.	Shortfall Loan at a rate lesser than the Bank rate.	
356.	DCA Clause 29.2.3 Page 80	Notwithstanding anything to the contrary shall be deemed to be the designed capacity of the Four Lane Project Highway	As we were not able to understand the operation and implication of this clause, Can the Authority offer some illustrative example to make the Clause understandable.	Provision is self explanatory
357.	DCA Clause 30.1.1 Page 82	Notwithstanding anything to the contrary project highway by 20% thereof.	Additional Toll-way Clause 6.3 on Page 33 mentions "...neither the Authority nor.... Before the 10th Anniversary of the Appointed Date, construct or cause to be constructed any competing roads." But clause 30.1.1 mentions "Authority shall not construct, and shall procure that no Government Instrumentality shall construct or cause to be constructed, any expressway or other toll road between, inter alia..... For use by traffic at any time before the 12th Anniversary of the Appointed date". Kindly clarify which has to be followed.	Provision is self explanatory
358.	DCA Clause 48.1 Page 136	Definition of Cars	Definition of Cars in the DCA includes three wheelers. However as per the toll policy the three wheelers are exempt from payment of Toll. Please clarify if three wheelers are to be tolled under this Concession	Toll shall be charged in accordance with the National Highways Fee (Determination of Rates and Collection) Rules, 2008 read with National Highways Fee (Determination of Rates and Collection) Amendment Rules, 2010 & National Highways Fee (Determination of Rates and Collection) Amendment Rules 2011 issued vide notification no. G.S.R. 15(E) dated 12.01.2011.
359.	DCA Clause 48.1	"Light Commercial Vehicle" or "LCV"	Definition of LCVs in the DCA	Toll shall be charged in accordance with the

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

	Page 142	means any mechanical vehicle being a passenger vehicle, mini bus, light goods vehicle or goods carrier with a Gross Vehicle Weight exceeding 7,500 (seven thousand five hundred) kilograms but less than 12,000 (twelve thousand) kilograms or a registered passenger carrying capacity exceeding 12(twelve) but less than 32 (thirty two), excluding the driver, and includes a Tractor with Trailer	includes Tractor with Trailer. However as per the Definition of LCV in the toll policy Tractor with Trailer is not included in LCVs. Please clarify Whether Concessionaire will be permitted to collect Toll from Tractor with Trailer under Light Commercial Vehicle category? Please confirm	National Highways Fee (Determination of Rates and Collection) Rules, 2008 read with National Highways Fee (Determination of Rates and Collection) Amendment Rules, 2010 & National Highways Fee (Determination of Rates and Collection) Amendment Rules 2011 issued vide notification no. G.S.R. 15(E) dated 12.01.2011
360.	DCA Clause 48.1 Page 144& 145	"Project Agreement means..... does not include..... any agreement for procurement of goods or services involving a consideration of up to Rs. 5 Crores"	Kindly clarify that Rs. 5 Crores limit applies to the agreement for procurement of services on yearly basis OR for the period during which the particular services are proposed to be procured?	Provision is self-explanatory
361.	RFP Schedule A Clause 1.1	Site of the Project Highway shall include the land building, structures and road works as described	Please clarify why buildings should be included in site. Should they not be demolished and removed to accommodate Project Highway.	As per DCA
362.	RFP Schedule A	Site 10. Permanent Bridge, Bypass or tunnel costing	The existing Dewas Bypass is a 2 lane toll road under a concession agreement, which is being operated by Ashoka Buildcon Limited, Since the Concessionaire has to develop the missing links of the Dewas Bypass than in which toll plaza that length will be considered. Kindly Specify. Secondly Guna Bypass is also a 2 lane road with 4 laned structures under a concession agreement, which is being operated by Guna Infrastructure Limited. Both of these bypasses are not mentioned as a part of the site. Kindly add into the site and specify the cost	Dewas bypass missing link is deleted from scope of work. Guna bypass will be taken up as per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			of existing bypass. Kindly specify when the concession period will be over for both the bypasses. Kindly clarify who will maintain both the Bypasses as mentioned above during the Concession Period Kindly clarify who will remove and bear the removal cost of the existing Toll Plazas.	
363.	RFP Schedule B Appendix B II	Alignment Plan is enclosed in digital form in CD	We request the Authority to kindly provide the Plan and Profile drawings in AutoCAD format.	It is a DBFOT project
364.	RFP Schedule B Appendix B-XVI	Details of Proposed ROB/RUB	The ROB proposed at Design Chainage Km 256.777 does not have any Bypass/Realignment proposed in the Schedules, Kindly specify the exact realignment location as mentioned in Table - Sr. 1 Kindly clarify on the Status of GAD's approval for ROB/RUB from Railway Authorities.	Exact realignment design chainage is from 254+000 to 257+500 GAD of ROB is under review with Railway Authority
365.	RFP Schedule C	Truck Lay bye Wayside Amenities	Please specify the number of wayside amenities. Please specify the area & other requirement to be provided for each truck lay bye. Presently, how many numbers to be provided is only spelt out.	As per DCA and manual of specifications IRC SP 84
366.	RFP Schedule D	Manual of Specifications and Standards to Apply	Kindly provide the Authenticated copy of IRC SP:84:2009 for four laning and IRC:73:2008 for two laning as mentioned in the specification as it has not been provided with the RFP Documents.	Self explanatory
367.	RFP Schedule D	Deviation from the Manual 1. Crash Barrier	Kindly provide the copy of MORTH circular vide no. RW/NH-	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		2. New Jersey Barrier	35072/04/2004-S& R (R dated 27 April 2010.	
368.	RFP Schedule D	Deviation from the Manual 3. ROB/Bridges	Kindly provide the copy of MORTH circular vide no. RW/NH-33044/2/88-S& R (B) dated 24 March 2009.	As per DCA
369.	Schedule D – IRC SP84 Clause 12.12.1	A real time system working round the clock shall be established for information of road users of the road, traffic and weather conditions on the project highway when the daily traffic exceeds 40,000 PCU's	Concessionaire shall have to implement the ATMS only when traffic exceeds 40,000 PCU's. Hence considering the Target traffic only 21,842 PCU's, ATMS may not form the part of the COD requirements; Please clarify	As per DCA
370.	Schedule D IRC SP 84 Clause 10.4.5 of Manual for 4-laning	Specifies that Tunnel is to be developed as part of the Toll Plaza	Is it mandatory to build tunnel or concessionaire can explore alternatives to meet the functional requirements	As per DCA
371.	RFP Schedule F	Performance Bank Guarantee	The format provided for the Performance Bank Guarantee does not adhere to the RBI Guidelines issued to Banks for issuance of Bank Guarantee. Please confirm that the Banks can add the mandatory time limitation clause at the end of the Bank Guarantee as prescribed by RBI. The clause is as under: “Notwithstanding anything contained hereinabove, Our liability under the Bank Guarantee is restricted to The Bank Guarantee shall be valid up to _____ We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before ”	Notwithstanding Clauses as per RBI guideline may be accepted by NHAI

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			We further wish to inform you that in earlier bids, these lines were part of the format given by NHA for Performance Bank Guarantee. Since, this is the mandatory clause to be put in by the banks as per the guidelines issued by RBI, therefore, the same should be allowed to be inserted at the end of the Bank Guarantee.	
372.	RFP Schedule S Clause 4.1.1	Escrow Agreement Clause 4.1.1	Clause 4.1.1 (g) mentions "Premium due and payable to the Authority" whereas in Clause 31.3.1 of the Draft Concession Agreement (DCA) there is no reference of this in the withdrawal during concession period. Further, as per Clause 26.2.2 of the DCA, the premium payable shall be deemed to be part of the concession fee for the purpose of this agreement. Hence, request you to please delete Clause 4.1.1 (g) from the Escrow Agreement as the same would get covered under Clause 4.1.1 (e).	As per DCA & Schedules
373.	General	Geotechnical Report	Please provide the Geotechnical Investigation report as well as Hydrological Investigation Data available from your Consultant, so that Bids are more competitive	It is DBFOT project however geotechnical report is enclosed for reference only.
374.	General	Forest land	Kindly provide the details of the Forest land along the project highway. Kindly provide the details chainage wise.	Forest diversion is under progress.
375.	Schedule A & B, Appendix A-IV and B-XIII	Existing Major Bridges improvement	Major Bridges at existing chainage km 323+925, km 328+660 are listed in schedule A but the improvement proposal for these structures is not mentioned in Schedule B. Kindly clarify	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

376.	Schedule A & B Appendix A-V and BVI	Existing ROB improvement	ROB at existing chainage km 329=142 is listed in schedule A but the improvement proposal for the same is not mentioned in schedule B. Kindly clarify	As per DCA
377.	Schedule B Appendix BII	Details of proposed Underpass/Cattle underpass	The underpass at 317+357 is proposed for New 4 lane structural configuration but the highway cross section at this location is "type 6" which is 6 lane. Hence structure and highway configuration is not matching. Please clarify	It is a 6 lane underpass
378.	Schedule B, Appendix B XIV	Widening of existing minor bridge	Some existing minor bridges (261+025, 261+365, 274+705, 365+980, 448+095, 450+020, 493+447, 493+600, 525+733, 559+765) which are less than 12.0 m are proposed to retain without widening. Kindly clarify whether bridges to be retained or widened	Minor bridges at km 448+095, 493+600, 493+447, 450+020 shall be widened upto 12 m other bridges shall be retained without widening.
379.	Schedule B, Appendix B V, Appendix B-1	Detail of service road & type of cross section description	For the typical cross section type 6 service road is not indicated in the description whereas in the Appendix B-V the service road details are provided in such section. Please confirm	Service road details as per Appendix B-V shall prevail.
380.	Schedule B, Appendix B-I	New Jersey Crash barrier	Please confirm whether the New Jersey crash barrier indicated in various cross section types can be replaced with metal beam crash barrier	As per Schedule
381.	Schedule B, Appendix B IV	Details of median width	Design chainage km 185+850 to km 186+800 (12 m depressed median proposed) and km 189+500 to 191+200 (2.5 m median proposed), both the stretches are in the approaches of flyover and TCS type 9. However the median widths are	As per Schedule

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			varying. Please confirm the requirement of such variation and clarify.	
382.	DCS, Article 4.2 & 4.3	Damages for delay in fulfilling the conditions precedents by Authority is 0.1% of the Performance Security per day of delay and that of concessionaire is 0.2% of the Performance Security per day of delay	Authority is requested to make the rate of damages payable by Authority & Concessionaire uniform to 0.1% of the Performance Security per day of delay, as had been provided in the tender documents (draft concession agreement) issued by NHA during April & May 2011. Since failure to comply with the conditions precedents by the scheduled date by both parties is equally detrimental for the project	As per DCA
383.	DCA m, Article 12.4 & Article 15.2	Article 12.4 states that damages shall be payable ! 0.1% of Performance Security in case the project milestones are delayed by more than 90 days as specified in Schedule G Article 15.2 states that in case COD does not occur prior to the 91 st day after the scheduled for laning date damages shall be payable @0.1% of the Performance Security	Scheduled Four laning date (910 th day after Appointed Date) is a milestone under the Project Completion Schedule G and the said date is also considered for the computation of damages for delay in achieving COD. Thus there is duplicate damages in case the scheduled four laning date gets extended by more than 90 days. Please clarify if there is double penalty.	Provision is self explanatory
384.	RFP Schedule B Appendix B II RFP Schedule B (Annex I) Clause 4.2	Alignment Plan is enclosed in digital form in CD Alignment Plan and Longitudinal Section – An alignment plan of Project Highway is given at Appendix B-II in Soft copy.	Please confirm a. Alignment Plan indicated in Appendix B-II is final or Concessionaire can modify as per the site condition as being a DBFOT project. b. We presume that the longitudinal Section attached with plan will not be part of agreement and Concessionaire need to develop longitudinal section/vertical profile.	It is a DBFOT project however minimum FRL shall be maintained.
385.	RFP Schedule B Appendix B I	Cross Section Type along the Project Highway	Kindly include the Lukwasa Bypass and Shajapur Bypass in the Appendix	From existing km 263+300 to 265+300 is Lukwasa bypass and existing km 506+550 to

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

	Clause 2		B I	516+500 is Shajapur bypass.
386.	RFP Schedule B Appendix B I, Appendix B V	Description of Typical Cross Section Details of Service Road	As per TCS 16 the Proposed Slip road of 7 m is one side but Appendix B-V details of SR road shows service road on Both side (ex Ch. 262.200 to 263.300)	As per Schedule
387.	RFP Schedule B Appendix B-XVI	Details of Proposed ROB/RUB	The ROB proposed at Existing Chainage/Design Chainage Km 14.937 is as per schedule but as per Alignment Plan of Dewas Bypass the proposed ROB is in between Km 7.8 to 7.9. Kindly specify the exact location, Chainage and reference points	Dewas bypass is deleted from scope of work
388.	RFP Schedule B Appendix B XI & Appendix B XII	Details of Proposed Vehicular Underpass Details of Proposed Pedestrian Underpass/Cattle Underpass	Kindly clarify at Km 246.178 what has to be constructed either a VUP or PUP. Since the chainages mentioned for VUP & PUP are at same location only.	At km 246+178 is is PUP
389.	RFP Schedule C	VI. Street Lighting	Kindly provide the Chainage wise location of Urban Stretches/Built up Areas.	As per DCA
390.	General		Please provide the conversion table of Existing and Proposed chainages.	As per given in Schedule
391.	TB, Appendix II Point no. 1 document dated Point no. 9		IN point no. 1, request authority to provide exact date of the document to be mentioned. In point no. 9, the expression "name of the bank alongwith branch address" - whether the name of the bank is to be mentioned or the expression is to be kept as it is? Request you to add following clause	Notwithstanding Clauses as per RBI guideline may be accepted by NHA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			at the end of point no. 13 Notwithstanding anything contained hereinabove, i. Our liability under the Bank Guarantee shall not exceed Rs.----- ----- Crores (in words), ii. The Bank Guarantee shall be valid upto (date), iii. We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before----- -----.	
392.	DCA, Clause 11.1 Existing utilities and roads	"Notwithstanding anything to the contrary.....Authority shall, upon written request from the Concessionaire, initiate and undertake at the Concessionaire's cost, legal proceedings for acquisition of any right of way necessary for such diversion."	Concessionaire shall assist the agency for construction of such diversion by deploying their resources. However, since such diversion shall be needed for the shifting of utilities, which is the responsibility of Authority only and as such the cost of diversion/land acquisition including legal proceedings should be borne by Authority.	Provision is self explanatory
393.	DCA, Clause 11.3.1 New utilities and roads	The concessionaire shall allow ----- -----Where such access or use causes any financial loss to the Concessionaire, it may require the user of the site to pay compensation or damages as per applicable laws. For the avoidance of doubt, it is agreed that use of the Site under this Clause shall not in any manner relieve the Concessionaire of its obligation to maintain the Project Highway in accordance with this	Clause is ambiguous and should be deleted. The responsibility should be of Authority only, as User are not at all concerned with the Progress of the Project and are not covered with any Agreement to pay any compensation /damages to Concessionaire for any delay in shifting of utilities. Otherwise please inform the logistics and methodology for compensation payment by User to Concessionaire	Provision is self explanatory

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Agreement and any damage caused by such use shall be restored forthwith.	as there is no mention in the agreement in this regards.	
394.	DCA, Clause 11.4 Felling of Trees: -	The Authority shall assist the Concessionaire in obtaining the Applicable Permits for felling of trees to be identified by the Authorityon the construction, operation or maintenance of the Project Highway. The cost of such felling shall be borne by the Authority, and in the event of any felling of trees. For the avoidance of doubt, the Parties hereto agree that the felled trees shall be deemed to be owned by the Authority and shall be disposed in such manner and subject to such conditions as the Authority may in its sole discretion deem appropriate.	Authority is in better position to obtain the necessary approval being a Govt. Organization. However Concessionaire can assist the Authority in all possible manners for the same. We presume that the cost of felling of trees shall include disposal of the same and handing over of the trees to forest department/ Authority and cost of the same shall be borne by Authority. Please Clarify	Provision is self explanatory
395.	DCA, Clause 12.3 (e)	No review and/or observation of the Independent Engineer and /or its failure to review and/or convey its observations on any Drawings shall relieve the Concessionaire of its obligations and liabilities under this Agreement in any manner nor shall the Independent Engineer or the Authority be liable for the same in any manner;	In case of any modification suggested by Independent Engineer on the design and drawing submitted by Concessionaire resulting into design related defects/ damage the liability and obligation of the concessionaire should be relaxed, and if any defects observed due to the above suggestion; the concessionaire shall not be made solely responsible.	Provision is self explanatory
396.	DCA, Clause 17.4.1(e)	Intervals at which the Concessionaire shall carry out periodic maintenance.	As the periodic maintenance is performance related the period/ interval of periodic maintenance cannot be fixed.	As per DCA
397.	DCA, Clause 35.3 Extension of Concession Period	"In the event that a material default or breach of this agreement set forth in Clause 35.2 causes delay in achieving COD or leads to suspension of or reduction in collection of Fee, as the	Since COD is not fixed date, it is not possible to assess the period of delay in achieving COD.	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		case may be, the Authority shall, in addition to payment of compensation."	Therefore, the extension should be granted for a duration which is proportionate to the period of stoppage of work and affected length.	
398.	DCA, Clause 37.3.1	Upon Termination on account of a Concessionaire Default during the Operation Period, the Authority shall pay to the Concessionaire, by way of Termination Payment, an amount equal to 90% of the debt due less Insurance Cover; provided that if any insurance claims forming part of the Insurance Cover are not admitted and paid, then 80% (eighty per cent) of such unpaid claims shall be included in the computation of Debt Due. For the avoidance of doubt, the Concessionaire hereby acknowledges that no Termination Payment shall be due or payable on account of a Concessionaire Default occurring prior to COD.	Request Authority to include Termination payment on account of Concessionaire Event of Default during the Construction Period as part or substantial part of the Project Assets shall be created based on the funding provided by the Lenders.	As per DCA
399.	Schedule Annex I, 4.1. Cross Sections B,	The Project Highway With or without Service Roads. A typical cross section along with different type of cross section required to be developed in different segments of the project highway	We presume that the cross sections to be developed in different segments as indicated in Appendix B-I shall be developed as provided in 'Manual of Specifications & Standards for Four Laning of Highways through Public Private Partnership' (IRC:SP:84-2009) Please Clarify	As per provision given in Schedule
400.	Schedule Annex I, 4.6 Reconstruction Stretches B,	Reconstruction stretches due to poor pavement/ subgrade soil condition is proposed at different locations.	We presume that the reconstruction stretches mentioned in Appendix B-VI are indicative only. Since the Project is DBFOT, the Concessionaire shall be allowed to submit their own designs for reconstruction of existing	It is a DBFOT project however reconstruction stretches shall be taken up as per Schedule B

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			pavements, based on their individual assessment of existing pavement structures through Benkelman Beam Deflection (BBD) or any other suitable method to determine existing pavement condition; within codal provisions and specifications. Please clarify	
401.	Schedule B, Appendix B-XIII B. Rehabilitation/ Repair/ Widening of Existing Major Bridges		Out of 13 nos. of existing major bridges only 3 nos. are mentioned in Appendix B-XIII for rehabilitation/ repair/ widening. Request Authority to confirm the same.	As per Schedule
402.	Schedule I, Clause 2.3 Tests	Riding Quality of each lane of the carriageway shall be checked with the help of a calibrated bum integrator and the maximum permissible roughness for purpose of this Test shall be 1800mm for each km.	Maximum permissible roughness limits in Schedule I (Clause 2.3, having maximum roughness value of 1,800 mm); and IRC SP:84 2009 (Clause 5.4.3 (ii) (b), having roughness value not exceeding 2,000 mm) does not match, please confirm the permissible limits to be followed.	As per DCA
403.	Schedule I, Clause 2.3, Tests	Riding Quality: Riding quality of each lane of the carriageway shall be checked with the help of a calibrated bum integrator and the maximum permissible roughness for purpose of this Test shall be 1800 mm for each kilometre.	Please clarify, whether standardized roughometer shall or could be used to check Riding Quality of each lane of the carriageway for Test on Completion of Project Highway.	As per DCA
404.	Excise exemption for the Imported Machinery		Please clarify whether the excise exemption shall be granted to the concessionaire or not.	As per DCA
405.	Annexure I of Schedule B, Appendix B-1, B-6,7,8,9,10-15	TCS-6, TCS-11, TCS-13 and TCS-17 includes provision of a NJB in median. Width of median shown is wider than NJB.	Please clarify what exactly to be done between NJB and Edge Strip (inside median)? Is it required to put construct bituminous layers till NJB within median also? Please clarify.	Yes
406.	Annexure I of	TCS-12 and TCS-15 indicates	Can this be reduced to 4.5m as	As per Schedule

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

	Schedule B, Appendix B-1, B-6,7,8,9,10-15	construction of 12m wide median at grade separated/Bridge locations.	suggested in standard manual? Please clarify.	
407.	Annexure I of Schedule B, Appendix B-1, B-6,7,8,9,10-15	Provision of Pedestrian Guard Rail	None of the cross sections indicate at provision of pedestrian guard rails at locations where footpath is provided. Please clarify the same.	As per Schedule & manual of specifications.
408.	Appendix B II, Plan & Profile	The plan drawings have been provided as part of RFP.	Please include the profile also. Please clarify, whether the profile is to be designed as per ISD or SSD for existing carriageway.	It is a DBFOT project.
409.	Annexure I of Schedule B, Appendix-B-VI	This appendix included list of reconstruction sections to be along the project corridor. For some sections it is indicated reconstruction from "subgrade top".	Please clarify whether it is necessary to excavate the existing surface for reconstruction or not. Most of locations shown in this table are falling in sections where overlay is suggested (TCS-3/4). Please clarify	As per Schedule
410.	Appendix B-XII: Pedestrian Underpasses, B-24	This appendix indicates at construction of new 6 lane/4 lane approach for PUP.	However, the cross section schedule indicates at provision of OL for existing pavement at some locations. Please clarify.	As per Schedule B
411.	Schedule B	BC layer is shown in the TCS for Service Roads.	Please clarify the requirement of BC for Service Road as per four laning manual.	It is a DBFOT project.
412.	Schedule B	In the TCS S schedule, the proposed toll plaza lengths indicated are more than 1.0km at each location.	Please specify the number of lanes considered and the tapering lengths. Is it 1 in 10 or 1 in 15?	It is a DBFOT project . provision shall be made as per Manual of specification of IRC-SP- 84
413.	Schedule B	in Appendix B-XV, The proposed total width of the culverts is specified as 33.0m for TCS type without Service Road. But the actual width required	Please clarify whether the head wall is required to construct just at the edge of Earthen shoulder line?	It is a DBFOT project concessionaire assess their own .The minimum width of culvert shall be as per formation width of corresponding TCS type.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		would vary based on the road profile.		
414.	Schedule-C, Clause (2 a) to 2. (c) Page , C-2	This clause includes at provision of toll plaza. This clause includes at provision of Road side Furniture as per Manual.	Please include the number of lanes at each locations Please include the numbers/locations for the same Please specify the locations of lighting, guard rails to be provided for the project corridor.	5+1 toll lane as per Manual of specification IRC- SP- 84 -2009 & up-gradable as per traffic requirement. As per schedule
415.	Schedule-C, Clause (g) Page , C-4	This clause includes at provision of telecom system. This clause includes at provision of lighting.	Please clarify whether HTMS is to be provided or only telecom system. Please specify the exact locations for the same.	As per DCA
416.	Schedule C	Truck lay	Please specify the Truck lay length to be provided. Please furnish a typical drawing for the same.	Typical drawing of truck lay bye as per Manual of specification IRC-SP-84-2009
417.	Schedule C	As per schedule-C, "t Street Lighting shall be provided in urban stretches / built-up areas, grade separators, underpasses, Toll Plazas and its approaches, and bus stops as per Manual of Specification and Standards"	Does the underpasses includes, PUP/CUP or VUP only, please clarify. Does lighting required only at grade separators and underpasses locations? Does it includes provision of lighting at approaches to GS and underpasses particularly to PUP/CUP approaches. Please clarify.	As per Manual of specification IRC-SP-84-2009
418.	General	Status of clearance required from Irrigation department for bridges at Canal crossing locations.	What is the status of clearance required from Irrigation department for bridges at Canal crossing locations? Please provide the details for the same.	Drawing has been submitted to Irrigation Department approval is awaited.
419.	General	Operation & Maintenance Cost	Please clarify whether the cost provided includes O&M cost also or not.	As per DCA

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			Please clarify cost corresponds to which year of SoR. Further, whether this includes for Overheads & Contractor Profit on which percentage. Please clarify the same.	
420.	Schedule A	Built up location are not provide on Schedule A	Kindly provide Built Up area locations	As per Schedule
421.	Schedule B	Width of New Four lane paved carriageway with raised median is to be 17.50 m and 18.20 m for depressed median as per four lane manual IRC 84. The project road consist raised median as well as depressed median however minimum pavement width is indicated on schedule B is 18.20	Kindly confirm median width on raised median is 18.20 m or 17.50 m	As per Schedule
422.	Schedule B	As per safety circular dated 10.04.2010, Metal Beam crash Barrier is to be provided on all median width above 2.0 m. However in cross section schedule (Appendix B –I) indicates Metal Beam Crash barrier is to be provided on median width having 12 m only	Kindly confirm safety circular dated 10.04.2010 is applicable or not	As per DCA
423.	Schedule B, Appendix B-1	It is indicated on Appendix B-I that Metal Beam is to be provided where median width is 12 m where as in case of cross section type 15 it is not indicated	Kindly confirm Metal beam is to be provided or not in this type of Cross Section	As per manual of specifications IRC-SP-84-2009.
424.	Schedule B Appendix-I	Median width is not indicated on TCS type 9 and Type 11	Kindly indicate width of median for this TCS	As per Schedule
425.	Sn 4.6, Annex I and Appendix B-VI	Reconstruction stretches have been indicated on Appendix B-VI with total length of 92.60 km. Whether concessionaire has authority to change this length based on site condition	Kindly confirm whether concessionaire has right to change this length or not.	It is a DBFOT project concessionaire may assess their own as per manual of specifications of IRC-SP-84-2009. Minimum requirement shall be as per Schedule.
426.	Schedule B	Please confirm Concessionaire is fee to adopt embankment fill at approach of	Kindly confirm	It is a DBFOT project concessionaire may assess their own as per manual of

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		ROB, VUP, PUP, FO location within available ROW without providing RE wall/Approach Retaining Wall		specifications of IRC-SP-84-2009.
427.	Schedule R	Fee notification as indicated on Schedule R is ol Notification. Kindly confirm new notification shall be applicable	New notification is to be followed.	Toll shall be charged in accordance with the National Highways Fee (Determination of Rates and Collection) Rules, 2008 read with National Highways Fee (Determination of Rates and Collection) Amendment Rules, 2010 & National Highways Fee (Determination of Rates and Collection) Amendment Rules 2011 issued vide notification no. G.S.R. 15(E) dated 12.01.2011.
428.	Schedule- B Appendix B-II	Extent of WMM, GSB & Subgrade layers.	As per drawings of Typical sections, WMM,GSB,Subgrade layers are not extended in the median side. Please clarify the correct drgs.	As per manual of specifications of IRC-SP-84-2009.
429.	Schedule- B Appendix B-VI	Mismatch of chaianages with TCS	Some of the reconstruction stretches are not matching with the typical cross sections e.g the TCS from ch 242 to 243 is mentioned as reconstruction from subgrade while as per TCS-1 it is totallu new construction. Please claiify the correct constuction.	As per Schedule B
430.	Schedule- B Appendix B-XIV, Part A	Under sl no. 26, I,e Minor bridge at CH. 339+860, it was stated that 2 decks of 12m each are proposed to be provided, whereas B part of the same in the repair, rehabilitation/widening of minor bridges, it was stated that the existing bridge shall be retained.	Since existing bridge is being retained therefore please confirm only one bridge of 12m width to be constructed.	New 2 lane bridge shall be constructed.
431.	Schedule- B Appendix B-XIV,B,4	For minor bridge at Ch. 463+565, it is mentioned in Part-A, (Construction of new minor bridges) under sl no. 71, that 2 deck of 12m each are proposed to be provided, whereas part-B, states that the existing bridge shall be retained and widened on LH side.	Since existing bridge is being retained therefore please confirm only one bridge of 12m width to be constructed.	New 4 lane bridge shall be constructed.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

432.	Schedule- B Appendix B- XIV,B,4	The existing bridge shall be jacketed retained and widened.	The statement is vogue and NHA is requested to clarify to which structural members jacketing needs to be done.	Please clarify the chainage of existing bridge.
433.	Schedule R	Base rate is given as per Toll notification 2007	As per Schedule R user fee calculation is given as per toll notification 2007 And additional toll from bypass is given as per addendum notification 2010-2011 Can you clarify the user fee calculation (Base rate for 3 axle trucks , Applicable rate) And also clarify the discount rate for within the district vehicles classification	Pease refer addendum
434.	Schedule B	Cross Sections	In given Cross sections the depression median side slope given as 1H:6V is it necessary to Provide the same, if so is it necessary to provide WBeam cross barrio protection?	Slope may be as manual of specifications IRC-SP-84-2009. WBeam crash barrier shall be provided as per Schedule B.
435.	Schedule B	As per Appendix B-I Type 8 is 6 lane without service road with 4.5m median, 2 m paved shoulder and 2 m ES	As per TCS Drawings type 8 is 4 lane without service road with 4.5 m median (Effective length 800m) Please clarify	As per Schedule it is 6 lane
436.	Schedule A, Appendix A-IV	The following existing Major Bridges are not mention in the list of Rehabilitation work (Appendix A-IV) so these are not require any activity in terms of Rehabilitation work. Chainages are 323/925, 328/663, 345/999, 368/500, 404/200, 433/550, 485/800, 511/700, 521/000 and 552/730.	Are these bridges will abandoned? Please clarify.	As per Schedule, however bridges coming on existing carriageway where bypass/realignment proposed shall be maintained during construction.
437.	Schedule A, Appendix A-VII	Sl. No. 54 of existing Minor Bridge list (Appendix A-VII), Ch. 418/810, where 2 – lane New Bridge has been proposed but nothing is mentioned in the document about rehabilitation of existing	Please clarify whether it is a 4 – lane Bridge or existing Bridge to Rehabilitate.	It is a new 4 lane bridge.

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

		Bridge.		
438.	Schedule A, Appendix A-VII	Since the following existing Minor Bridges are not mention in the list of Rehabilitation work (Appendix A-VII) will not require any activity in terms of Rehabilitation work. Chainages are 242/540, 251/300,264/650, 265/765, 278/710, 322/286, 327/620, 327/846, 328/392, 331/215, 335/505, 349/215, 355/610, 356/680, 359/730, 361/100, 381/790, 383/250, 386/495, 386/929, 388/770, 389/504, 401/480, 409/960, 426/540, 451/710, 455/970, 472/240, 474/460, 477/225, 480/750, 496/090, 497/107, 508/900, 509/100, 509/900, 520/425, 522/535, 535/050, 549/490, 554/190 and 565/660.	Are these bridges will abandoned? Please clarify.	As per Schedule, however bridges coming on existing carriageway where bypass/realignment proposed shall be maintained during construction.
439.	Schedule B, Appendix B-XV, table B	Construction of new culvert for HPC	Is the proposed span arrangement indicating the dia of HP?	Yes
440.	Schedule C	Rest area one side of respective chainages mentioned in Schedule C is only 7 numbers to be provided.	We presume that, it is not required to provide Rest areas on the both side of the chainages.	Rest area shall be provided at 4 locations. Design chainage are as under: 60 + 600, 135+350, 207+550 & 286+500
441.	Schedule B, Appendix B-I	As per Appendix B-I, Type-8: 6 laning without service road with 4.5 m median, 2 m paved shoulder and 2 m earthen shoulder As per Typical Cross Section Drawings TCS-8: 4 lane with 4.5 m median, 1.5 m PS and 2 m ES While as per Plan & Profile drawings TCS-8: 6 lane with 4.5 m median	Please clarify the discrepancies in cross sections.	TCS 8 shall be 6 lane with 4.5 m median, 1.5 m paved shoulder and 2 m earthen shoulder . TCS 9 shall be 6 lane with 7 m slip road on both side with 1.5 m earthen shoulder and 1.5 m footpath cum drain.
442.	General		Please mention the locations for	As per manual of specifications IRC-SP-84-

Four laning of Shivpuri-Dewas Section of NH 3 from km 236.000 to km 566.450 in the State of Madhya Pradesh under NHDP Phase IV on BOT (Toll) on DBFOT Pattern – **Reply to Pre-Bid Queries**

			Guard rail and footpath to be provided.	2009.
443.	General		Is Dewas Bypass missing link falls under existing 2-Lane carriageway? If not, then the length of by-pass should be reflected in Table of Appendix B – III.	Dewas bypass missing link has been deleted.
444.	General		Stretch for realignment on which the proposed Minor Bridge Design Ch. 254/555 and 255/738 need to construct are not available in table No. 2 for Realignment under Appendix B – III. Please provide us detail.	As per Schedule
445.	General		Please provide us Plan & Profile in AUTOCADD and also Structural GADs	It is a DBFOT project